TITLE	
FDI Matchmaking at MSPO 2026 in Kielce, Poland	
SOLICITATION NUMBER 27-317911-WSAW-SL	**DATE** May 7, 2026
OFFER DELIVERY In order for GAC to consider an offer valid, GAC must receive the offer no later than 10:00 AM EDT (Eastern Daylight Time) on May 18, 2026, referred to as the “Closing Date and Time”. Only electronic copies will be accepted and received at the following email address: internationalproposals@international.gc.ca Attention: **SARAH-LYNN LAVENTURE AKA CANADA’S REPRESENTATIVE** Solicitation #: 27-317911-WSAW-SL **This is a non-binding process that does not give rise to contractual obligations between Canada and each Offeror. The Offeror may withdraw their offer at any time. The Offeror has no obligation to Canada until, and unless it has entered into a contract to provide goods, services, or construction to Canada.**	

TABLE OF CONTENTS

1. Solicitation of Offers.

1.1. Introduction. Canada requests offers from Offerors to fulfill the needs of the Department of Foreign Affairs, Trade and Development (also known as "Global Affairs Canada" or "GAC"), set out in the annex "Statement of Work". If a supplier is interested and able to meet these needs, Canada would appreciate and welcome an offer from such supplier.

1.2. Non-legally Binding Process. The process set out in this Solicitation of Offers is not contractually binding on Canada and on the Offerors. An Offeror may revoke its offer at any time before acceptance by Canada of such offer. Under this process, no contract can arise without acceptance by Canada of an offer to contract, or without acceptance by an Offeror of a counteroffer to contract made by Canada to the Offeror.

1.3. Offers. Canada is seeking offers from Offerors to provide to the Department of Foreign Affairs Trade and Development Canada professional services of a contractor specializing in the identification of investment prospects with strong expertise in the European defence and security market. The lead generator will organize a series of business-to-business (B2B) matchmaking meetings at the International Defence Industry Exhibition (MSPO 2026) in Kielce, Poland, from September 7 to 11, 2026, as described in the Annex - Statement of Work.

1.4. Term. The period of the Contract is tentatively set for June 1, 2026, to October 9, 2026. However, in the event of unusual circumstances, the contract could be awarded at a sooner or later date.

1.5. Trade agreements do apply to this process. The following trade agreements apply:

- Canadian Free Trade Agreement (CFTA)
- Canada–Chile Free Trade Agreement
- Canada–Colombia Free Trade Agreement
- Canada–Honduras Free Trade Agreement
- Canada–Korea Free Trade Agreement
- Canada–Panama Free Trade Agreement

2. Security.

2.1. Security Requirements. There are no security requirements applicable to this Contract.

3. Offeror Preparation.

3.1. Offeror Responsibilities. Each Offeror should:

a. prepare its offer in accordance with the solicitation of offers instructions;

b. obtain any clarification it considers necessary before submitting an offer;

c. submit a complete offer by the Closing Date and Time as per the instructions noted in section titled "Offer Submission". Canada will not consider an offer made after the Closing Date and Time; and,

d. provide a comprehensible and sufficiently detailed offer, including all information requested pursuant to the enclosed annexes.

3.2. Legal Capacity. For an offer to be considered by Canada the Offeror must have the legal capacity to contract. If the Offeror is a sole proprietorship, a partnership (if common law) or a general partnership (at civil law), or a corporate body, the Offeror should provide, if requested by Canada's Representative, a statement and any requested supporting documentation indicating the laws under which it is registered or incorporated together with the registered or corporate name and place of business. This also applies to Offerors submitting an offer as a joint venture. An offer cannot be assigned or transferred in whole or in part.

3.3. Compliance with Code of Conduct. Canada will not consider an offer by an Offeror who did not indicate, as set out in the Annex – Offer Submission Form, that they apply Canada's Code of Conduct for Procurement.

3.4. Conflict of Interest.
Canada may reject an offer if the Offeror, any of its subcontractors, or any of their respective employees or former employees

- **a.** was involved in any manner in the preparation of the solicitation of offers or in any situation of conflict of interest or appearance of a conflict of interest, or
- **b.** had access to information related to the solicitation of offers that was not available to other Offerors and that would, in Canada's opinion, give or appear to give the Offeror an unfair advantage.

3.5. Experience Not an Unfair Advantage. Canada will not consider the experience that any Offeror has acquired by providing the goods and/or services described in this solicitation of offers (or similar goods and/or services), as conferring, in itself, an unfair advantage or creating a conflict of interest.

3.6. Notification of Rejection. If Canada intends to reject an offer outright, Canada's Representative will so inform the Offeror and may provide to the Offeror an opportunity to make representations.

3.7. Former Public Servants. Canada requests that Offerors who are Former Public Servants in receipt of a Pension or Lump Sum Payment provide the requested information in the Annex- Offeror Declaration Form.

4. Offer Submission.

4.1. Offer Receipt. Canada will only consider offers submitted electronically to the email address indicated on the tender notice by the Closing Date and Time. Canada will not consider offers submitted in any other manner or at a later date.

4.2. Submission Process and Offer Format.

- **a.** An Offeror may repeal its offer at any time. An Offeror may modify its offer prior to the solicitation of offers Closing Date and Time. The latest offer received from a given Offeror will supersede any offer previously received from that Offeror. If the Offeror provides simultaneous copies of its offer and there is a discrepancy between the wording of any of these copies, the wording of the last received offer will supersede any previously received offers.
- **b.** Offers should be in Portable Document Format (.pdf) or Microsoft Office 2003 or greater.

- **c.** Each Offeror should ensure that its name and the solicitation of offers number are referenced in the email subject line.
- **d.** Offerors may submit their documents and supporting information in either English or French. Canada may decide not to consider offers received in any other language.
- **e.** Canada has the capacity to receive multiple documents, however, with a limit of 10MB per email. For security reasons, Canada cannot accept:
  - **i.** files using .rar, encrypted PDF, or .exe;
  - **ii.** links to online storage or a File Transfer Protocol service; and,
  - **iii.** files that contain executable code, including macros.

4.3. Acknowledgement of Receipt. Canada cannot guarantee receipt of an offer sent through electronic means and will not be responsible for any failure attributable to the transmission or receipt of an electronic offer. Therefore, it is recommended that an Offeror seek acknowledgement of receipt from Canada. The offer receiving unit may send an acknowledgement of the receipt of offer document(s) via email. This acknowledgement will confirm only the receipt of offer document(s) and will not confirm if Canada is able to open the attachments or that the content is readable.

4.4. Offer Sections. To facilitate the comparison of offers, Canada requests that the Offerors submit their offers separated into the following sections:

- **a.** Section I: Offeror Declaration Form;
- **b.** Section II: Technical Offer;
- **c.** Section III: Financial Offer; and
- **d.** Section IV: Proposed changes to the contractual terms and conditions in Annex – Proposed contract clauses (if applicable).

4.5. No return. Canada will not return to sender the documentation comprising the offers it receives. However, Canada will treat all offers as confidential, subject to the provisions of the Access to Information Act and the Privacy Act.

4.6. Technical Difficulties of Offer Transmission. Despite anything to the contrary in this solicitation of offers, where an Offeror has commenced transmission of its offer through an electronic submission in advance of the solicitation of offers Closing Date and Time, but due to technical difficulties, Canada was unable to receive or decode the entirety of the Offer by the deadline, Canada may nonetheless accept the entirety of the Offer received after the solicitation of offers Closing Date and Time, provided that the Offeror demonstrates the following:

- **a.** The offeror contacted Canada in advance of the solicitation of offers Closing Date and Time to attempt to resolve its technical difficulties; OR
- **b.** The electronic properties of the Offer documentation clearly indicate that all components of the Offer were prepared in advance of the solicitation of offers Closing Date and Time.

4.7. Completeness of the Offer. At any time, including after the Closing Date and Time, Canada may examine the offer to determine completeness (i.e. responsiveness to the instructions and needs indicated in the solicitation of offers). The review for completeness will be limited to rectifying errors of form, for example, whether the information submitted can be accessed and opened. This review does not constitute an evaluation of the content or an evaluation of the responsiveness of the offer to the requirement. Canada can provide the Offeror with the opportunity to submit information found to be missing or incomplete in this review. After reviewing an offer, Canada may consider it to be complete when the following elements have been submitted by the offeror:

- **a.** the certifications and securities (if required);
- **b.** the complete and accurate Offeror's identity with supporting documentation; and
- **c.** that all documents (including certifications, declarations and proofs) created prior to offer closing but due to technical difficulties Canada was unable to receive them, have been properly submitted and received by Canada.

4.8. Provision of Documentation. When this solicitation of offers document is posted publicly to CanadaBuys (https://canadabuys.canada.ca/en), Canada will concurrently or subsequently make the associated Notices of Proposed Procurement, amendments to the solicitation of offers (including significant enquiries received and their replies), and all related documents available for download through CanadaBuys. Canada is not responsible and will not assume any liability whatsoever for the information found on websites of third Parties. Canada will not notify Offerors if it amends a Notice of Proposed Procurement, a solicitation of offers, or any related documentation. Offerors are responsible for regularly consulting CanadaBuys for the most up-to-date information. Canada will not assume liability for any oversight on the Offeror's part nor for notification services offered by a third Party. When this solicitation of offers document is not posted to CanadaBuys and instead sent directly to potential Offerors, Canada will send the related documents (including amendments and significant enquires received) directly to the Offerors invited to submit an offer.

4.9. Offer Costs. The Offeror is solely responsible for all costs associated with preparing and submitting its offer, as well as any costs it incurs in relation to the evaluation of its offer.

4.10. Entire Requirement. The solicitation of offers documents contain all the requirements, instructions and other documentation relating to the solicitation of offers; no other information or documentation is relevant. Offerors should not assume that practices used under previous non-binding solicitations of offers, under contractually binding requests for proposals or under contracts for the procurement of goods or services will continue or that the Offeror's existing capabilities meet the needs of the solicitation of offers simply because they have fulfilled previous needs or requirements.

5. Communications.

5.1. Communications During Solicitation of Offers Period. To ensure the integrity of the competitive process, Canada requests that each Offeror direct all questions and other communications regarding the solicitation of offers only to Canada's Representative identified in the solicitation of offers. Canada's Representative may reject an offer from an Offeror that sends communications in another manner or to another person.

- **a. Period for Questions.** Offerors should submit all questions in writing no later than 5 business days before the offer Closing Date and Time. Canada will likely not respond to questions submitted after this deadline.
- **b. Detail of Questions.** Offerors should accurately reference the numbered item of the solicitation of offers to which the question relates and explain each question in sufficient detail to enable Canada to provide an accurate answer.
- **c. Proprietary Questions.** For any technical questions containing proprietary information, Offerors should clearly mark those questions as "proprietary". Canada will treat such questions

as proprietary except where Canada determines that the question is not of a proprietary nature. Canada may edit the question(s) or may request that the Offeror revise the question(s) to eliminate the proprietary nature of the question(s) so that Canada can provide the answer to all Offerors. Canada will likely not answer questions that are in a form it cannot distribute to all Offerors.

5.2. Offer Debriefings. Offerors may request a debriefing on the results of the solicitation of offers process. Offerors should make such a request to Canada's Representative within 15 business days from its receipt of the results of the solicitation of offers process. Canada will provide the debriefing in writing, by telephone, or in person, at Canada's option.

6. Contents of Offer.

6.1. Offeror Declaration Form. Canada requests that each Offeror includes the Annex - Offeror Declaration Form whereby the Offeror provides information to Canada and certifies it. If Canada determines that the information in the Offeror Declaration Form requires completion or correction, Canada will provide the Offeror with a deadline to do so.

6.2. Technical Offer Contents.

- **a. Technical Criteria.** The Offeror should explain in its offer how the latter fulfills all evaluation criteria set out in the Annex – Technical Criteria**.** Simply repeating a statement contained in the solicitation of offers is not sufficient. Canada will rate the offer against those criteria.
- **b. Response.** In its response to the evaluation criteria, the Offerors should:
  - **i.** demonstrate their understanding of the needs contained in the solicitation of offers; and
  - **ii.** concisely explain how they will meet these needs.
- **c. Organization.** Offerors should address and present topics in the order of the evaluation criteria under the same headings. To avoid duplication, an Offeror may refer to different sections of its offer by identifying where it has already addressed the subject topic, by identifying the specific paragraph and page.

6.3. Financial Offer Contents. An Offeror must submit their financial offer in accordance with Annex – Financial Offer Form.

6.4. Exchange Rate Fluctuation. Canada may decide not to accept to mitigate exchange rate fluctuation risks for this solicitation of offers. Canada may reject an offer solely on this basis.

6.5. Proposed Changes to the Contractual Terms and Conditions in Annex – Proposed contract clauses. An Offeror should indicate any amendment it would request to the proposed contractual terms and conditions, with a view to making the contract workable in practice. The Offeror should further set out how the change will affect for Canada the balance of risks and the cost of the contract (aside from price).

7. Evaluation Procedures.

7.1. Evaluation Team. An evaluation team composed of representatives of Canada will evaluate the offers.

7.2. Technical Evaluation. Canada will review each offer against the technical criteria as per Annex - Technical Criteria applying the methodology set out in that annex. Any element of the technical criteria identified specifically with the words "must" or "mandatory" is one that Canada considers to be essential. Canada will disregard as non-responsive offers that fail to meet "mandatory" or "essential" requirements.

7.3. Financial Evaluation.

- **a. Evaluation of Price.** Canada will evaluate all offers in Euros (€) in the attached Financial Offer Form.
- **b. Price Justification.** If an offer is the sole offer received, Canada will likely request from the Offeror, one or more of the following:
    - **i.** a current published price list indicating the percentage discount available to Canada;
    - **ii.** a copy of paid invoices for the like quality and quantity of the goods, services, or both sold to other customers;
    - **iii.** a price breakdown of all costs (including labour, materials, transport, general and administrative overhead, transportation, etc.) and profit;
    - **iv.** price or rate certifications; and
    - **v.** any other supporting documentation that Canada may request.

7.4. Assessment. Canada will assess offers in accordance with the entire requirement of the solicitation of offers. Canada will reject, as non-responsive, any offer that fails to meet all "mandatory" or "essential" solicitation requirements.

7.5. Support for Offer Requirements. Canada may, but will have no obligation to, do the following:

- **a.** seek clarification or verification as to any information provided,
- **b.** contact any references to verify any information the Offeror submitted,
- **c.** request information about the Offeror's legal status,
- **d.** conduct a survey of the Offeror's facilities,
- **e.** examine the Offeror's technical, managerial, and financial capabilities,
- **f.** correct any error in
    - **i.** the extended pricing of offers by using unit pricing, or
    - **ii.** the quantities in offers to reflect the quantities stated in the solicitation of offers (and, in the case of error in the extension of prices, the unit price will govern),
- **g.** independently verify any information the Offeror provided.

7.6. Timeline. If the Offeror does not comply with a request by Canada, within the time specified in Canada's request, to allow Canada to complete its evaluation of the offer, Canada may reject the offer or evaluate it without the benefit of the requested information.

7.7. Evaluation Based on Documents Provided. Unless otherwise specified in this solicitation of offers, Canada will evaluate only the documentation provided in the offer and may discard information it could not verify pursuant to the section entitled **Support for Offer Requirements**. Canada will not consider as part of the offer information and documentation available from other sources but not submitted with the offer such as references to website addresses where additional information can be found, or technical manuals or brochures.

7.8. Rights of Canada. Canada may:

- **a.** reject any or all offers in response to the solicitation of offers;
- **b.** enter into negotiations with one, several or all Offerors on any or all aspects of their offers;
- **c.** cancel the solicitation at any time;
- **d.** reissue the solicitation;
- **e.** if no compliant offers are received and the requirement is not substantially modified, reissue the solicitation of offers by inviting only the Offerors who submitted an offer to resubmit within a period designated by Canada; or
- **f.** negotiate with the sole compliant Offeror.

7.9. Rejection of Offer. Canada may reject an offer where:

- **a. Bankruptcy.** The Offeror is bankrupt, or its activities are inoperable for an extended period;
- **b. Improper Conduct.** The Offeror or an employee or subcontractor included as part of the offer:
  - **i.** is subject to a Vendor Performance Corrective Measure, under the Vendor Performance Corrective Measure Policy, which renders them ineligible to offer on the requirement;
  - **ii.** based on evidence satisfactory to Canada, has committed fraud, bribery, fraudulent misrepresentation or failed to comply with laws protecting individuals against any manner of discrimination;
  - **iii.** based on evidence satisfactory to Canada, has conducted themselves improperly in the past (for example, conduct that does not align with the Code of Conduct for Procurement);
- **c. Suspension or Termination.** The Offeror or an employee or subcontractor included as part of the offer has been suspended or terminated by Canada for default under a contract with Canada;
- **d. Poor Performance.** In Canada's opinion, the Offeror's performance on other contracts, including the efficiency and workmanship as well as the extent to which the Offeror performed the work in accordance with contractual clauses and conditions, is sufficiently poor to jeopardize the successful completion of the current requirement; and
- **e. Not Good Value.** In Canada's opinion, the offer does not provide good value to Canada.

7.10. Prejudicing Integrity or Fairness - Multiple Offers from Single Offeror or Joint Venture. Canada may apply additional scrutiny when it receives multiple offers in response to a solicitation of offers from a single Offeror or a Joint Venture. Canada may reject any offer submitted by a single Offeror or Joint Venture if their inclusion

- **a.** in the evaluation has the effect of prejudicing the integrity and fairness of the process, or
- **b.** in the procurement process would distort the solicitation of offers evaluation or would not provide good value to Canada.

7.11. Ability to Make Representations. If Canada intends to reject an offer under the section entitled **Rejection of Offer** (c) or (d), Canada's Representative will inform the Offeror and may give the Offeror ten (10) calendar days within which to make representations, before making a final decision on the offer rejection.

8. Basis of Selection.

8.1. Highest Combined Rating of Technical Criteria and Price. For each responsive offer, the technical score and the pricing score will be added to determine its combined rating. The responsive offer with the highest combined rating of technical criteria and price will be recommended for award of a contract.

8.2. To be declared responsive, an offer must:

- **a.** comply with all the requirements of the offer solicitation;
- **b.** meet all mandatory technical evaluation criteria; and,
- **c.** obtain the required minimum of 48 points overall for the technical evaluation criteria which are subject to point rating. The rating is performed on a scale of 90 points.

IMPORTANT: A Bidder must obtain a minimum of 48 points for the optional point-rated criterion be added to the final score.

8.3. Offers not meeting (a) or (b) or (c) will be declared non-responsive or non-compliant. Neither the responsive offer that receives the highest number of points nor the one that proposed the lowest price will necessarily be accepted.

8.4. The selection will be based on the highest responsive combined rating of technical criteria and price. The ratio will be 70% for the technical criteria and 30% for the price.

8.5. The technical score for each responsive offer will be determined by adding the total number of points obtained using the point-rated technical criteria. The overall technical score will be determined by dividing the technical score (total number of points obtained) by 90 points (maximum number of points available) and multiplying by the ratio of 70%.

8.6. The pricing score for each responsive offer will be determined as follows: each responsive offer will be prorated against the lowest evaluated price and the ratio of 30 %.

8.7. For each responsive offer, the technical score and the pricing score will be added to determine its combined rating. The responsive offer with the highest combined rating of technical criteria and price will be recommended for award of a contract.

THE FOLLOWING TABLE IS FOR ILLUSTRATIVE PURPOSES ONLY

		Offeror 1	Offeror 2	Offeror 3
Technical Score		80/90	71/90	15/ 90
Offer Evaluated Price		$55,000	$50,000	Non-responsive
Calculations	Overall Technical Score	(80/90) x 70 = 62.22	(65/90) x 70 = 50.55	Non-responsive
	Pricing Score	(50/55) x 30 = 27.27	(50/50) x 30 = 30.00	Non-responsive
Combined Rating		89.49	83.55	Non-responsive
Result		1st	2nd	Non-responsive

*In the above scenario, Offeror 1 would be declared the successful bidder.

9. Negotiation process.

9.1. Canada's Acceptance or Request to Negotiate. Upon determination of the preferred Offeror, Canada will invite the Offeror who proposed it to enter into a contract with Canada. Canada may either accept the offer as is or propose adjustments to the offer.

9.2. Negotiation. If, after ten (10) business days, Canada and the preferred Offeror are unable to reach an agreement on contractual terms, Canada may reject the offer from the preferred Offeror and commence negotiations with the next ranked Offeror.

10. Offer Challenge and Recourse Mechanisms.

10.1. Challenges to Procurement Process. Several mechanisms are available to potential suppliers to challenge aspects of the procurement process up to and including entering into a contract. Canada encourages suppliers to bring their concerns first to the attention of Canada's Representative. Potential complaint bodies include:

- **a.** The Office of the Procurement Ombudsman (OPO); and
- **b.** The Canadian International Trade Tribunal (CITT)

10.2. Deadlines for Filing Complaints. There are strict deadlines for filing complaints; the time periods vary depending on the particular complaint body. Suppliers should therefore act quickly when they want to challenge any aspect of the procurement process.

Annex – Offeror Declaration Form

1. Offeror's Full Legal Name The Offeror is the person or entity (or, for a Joint Venture, the persons or entities) submitting the proposal. Offerors who are part of a corporate group should identify the corporation that is the actual Offeror.	
Offeror's Full Legal Name	
2. Offeror's Full Legal Address	
Offeror's Full Legal Address	
3. Ownership Structure Offerors who are incorporated, including those submitting an offer as a Joint Venture, should provide a complete list of names of all individuals who are currently Directors of the Offeror. Offerors submitting an offer as sole proprietorship, as well as those submitting an offer as a Joint Venture, should provide the name of the owner(s). Offerors bidding as societies, firms or partnerships do not need to provide any information for this section.	
Director(s) of the Offeror	
Name of the Owner(s)	
4. Identification of Joint Venture Parties For a proposal submitted on behalf of a Joint Venture, provide the information or indicate "N/A" if not applicable. If Canada accepts a contract with a Joint Venture, all members of the Joint Venture will be jointly and severally or solidarily liable for the performance of any resulting contract.	
☐ The Offeror is a Joint Venture. ☐ The Offeror is not a Joint Venture	
Legal Name(s) of Joint Venture Member	
Legal Address(es) of Joint Venture Member	
Name of the Joint Venture, if applicable	
5. Authorized Representative of the Offeror Please provide the contact information for the representative authorized to represent the Offeror.	
Name	
Title	
Telephone Number	
Email	
6. Electronic Payments The Offeror accepts the following payments (please check all that apply):	
☐ Direct Deposit ☐ Wire Transfer	

7. Language preferences The Offeror wishes that communications and documents be made in:	
☐ English ☐ French	
8. Subcontractors As per proposed contract clause **Subcontracts**, Canada may reject an offer which includes the use of a subcontractor for the Work. Please indicate below whether the Offeror intends to use a subcontractor(s) to complete the Work.	
☐ The Offeror intends to use a subcontractor(s). ☐ The Offeror does not intend to use a subcontractor(s).	
Legal Name(s) of Subcontractor(s)	
Legal Address(es) of Subcontractor(s)	
Authorized Representative of Subcontractor(s)	
Name	
Title	
Telephone Number	
Email	
9. Accuracy and Integrity	
Accuracy of information	☐ All the information that the Offeror submits with its offer is true, accurate, and complete as of the date indicated below.
Code of Conduct for Procurement	☐ The Offeror has reviewed and will apply Canada's Code of Conduct for Procurement.
Canada's Ineligibility and Suspension Policy	The Offeror understands that: ☐ Canada will apply its Ineligibility and Suspension Policy. ☐ Under certain circumstances, as described in the Policy, Canada may determine that an Offeror is ineligible or suspended. Canada is unlikely to accept an offer where an Offeror is ineligible or suspended. ☐ Canada may request additional information, certifications, and validations from the Offeror for the purpose of making a determination.
10. Offeror Resources The Offeror, if contracting with Canada, will provide the resources proposed in its offer	

Named individuals	☐ The Offeror certifies that every individual proposed in the offer will be available to perform the Work as required by and at the time specified in this solicitation of offers.
Non-employees	☐ The Offeror certifies that it has the consent of every non-employee to perform the services proposed in the offer and to submit each non-employee's résumé to Canada.
Canada may reject an offer for which the Offeror has not, upon Canada's request, provided a written confirmation, signed by the individual, of that permission and of the resource's availability.	

11. Former Public Servant

Contracts entered into with former public servants ("FPS") who receive a federal government pension or lump sum payment must bear the closest public scrutiny and reflect fairness in the spending of public funds. To comply with Treasury Board policies and directives on contracts with FPS, Offerors must provide the information required below before entering into the contract award.

Is the Offeror an FPS who receives a pension?	☐ Yes (If yes, please fill out **Former Public Servant - Form Receipt of Pension**) ☐ No
Is the Offeror an FPS who received a lump sum payment under a Work Force Adjustment Directive?	☐ Yes (If yes, please fill out **Former Public Servant - Form Receipt of Lump Sum Payment**) ☐ No

11.1 Form: Former Public Servant - Receipt of Pension

Canada requires that, if the Offeror is in receipt of a pension, the Offeror provide the following information for each FPS in receipt of a pension. Each Offeror acknowledges that the successful Offeror's status, with respect to being a former public servant who received a pension, will be reported on departmental websites as part of the published proactive disclosure reports in accordance with *Contracting Policy Notice* and the *Guidelines on the Proactive Disclosure of Contracts*.

a. **Name of former public servant**	
Date of termination of employment or retirement from the Public Service	
b. **Name of former public servant**	
Date of termination of employment or retirement from the Public Service	

11.2 Form: Former Public Servant - Receipt of Lump Sum Payment

If the Offeror is in receipt of a lump sum payment, please provide the following information. For all contracts

awarded entered into during the lump sum payment period, the total amount of fees that may be paid to an FPS who received a lump sum payment is $5,000, including Applicable Taxes. Each Offeror acknowledges that the successful Offeror's status, with respect to being a former public servant who received a lump sum payment, will be reported on departmental websites as part of the published proactive disclosure reports in accordance with *Contracting Policy Notice* and the *Guidelines on the Proactive Disclosure of Contracts*.	
a. **Name of former public servant**	
Conditions of the lump sum payment incentive	
Date of termination of employment	
Amount of lump-sum payment	
Rate of pay on which lump sum payment is based	
Period of lump-sum payment (start date, end date and number of weeks)	
Number and amount of other contracts subject to the restrictions of a workforce adjustment program	
b. **Name of former public servant**	
Conditions of the lump sum payment incentive	
Date of termination of employment	
Amount of lump-sum payment	
Rate of pay on which lump sum payment is based	
Period of lump-sum payment (start date, end date, and number of weeks)	
Number and amount of other contracts subject to the restrictions of a workforce adjustment program	
Signatures	
Signature of representative authorized to sign on behalf of the Offeror	
Name:	
Title:	
Date:	

Annex - Proposed Contract Clauses

1. Summary.

1.1 Contract Summary. The Contract is for the professional services of a service provider specializing in the identification of investment prospects with strong expertise in the European defence and security market. The lead generator will organize a series of business-to-business (B2B) matchmaking meetings at the International Defence Industry Exhibition (MSPO 2026) in Kielce, Poland, from September 7 to 11, 2026, as described in the Annex - Statement of Work.

2. Performance of Work.

2.1. Security Requirement.

There is no security requirement applicable to this Contract

2.2. Conduct of the Work.

- **a. Performance.** Subject to section "Suspension of the Work", the Contractor agrees to fulfill all obligations in full compliance with the requirements and Specifications of the Contract, regardless of any potential dispute with Canada. The Contractor must:
  - **i.** perform the Work diligently and efficiently;
  - **ii.** except for Government Property, supply everything necessary to perform the Work;
  - **iii.** use, as a minimum, quality assurance procedures, inspections and controls generally used and recognized by the industry to ensure the degree of quality required by the Contract;
  - **iv.** select and employ a sufficient number of qualified people; and
  - **v.** perform the Work in accordance with standards of quality acceptable to Canada and in full conformity with the Specifications and all the requirements of the Contract.
- **b. Responsibilities.** The Contractor is fully responsible for performing the Work. Canada will not be responsible for any negative consequences or extra costs if the Contractor follows any advice given by Canada unless the Contracting Authority provides the advice to the Contractor in writing and includes a statement specifically relieving the Contractor of any responsibility for negative consequences or extra costs that might result from following the advice.
- **c. The Contractor represents and warrants** that it and all its resources and subcontractors:
  - **i.** are competent to perform the Work;
  - **ii.** have everything necessary to perform the Work, including the resources, facilities, labour, technology, equipment, and materials;
  - **iii.** have the necessary qualifications, including knowledge, skill, know-how and experience, and the ability to use them effectively to perform the Work; and
  - **iv.** will maintain any credentials, accreditations, licenses and certifications necessary to perform the Work throughout the duration of the Contract.
- **d. Reports.** The Contractor must provide all reports that are required by the Contract and any other information that Canada may reasonably require from time to time.

2.3. Access to Facilities and Equipment.

- **a.** Canada's facilities, equipment and personnel are not available to the Contractor to perform the Work unless the Contract specifically provides for it.

b. The Contractor is responsible for advising the Contracting Authority in advance if it requires access to Canada's facilities, equipment or personnel to perform the Work.

c. The Contractor must comply and ensure that its employees and subcontractors comply with all security measures, standing orders, policies or other rules in force at the site where the Contractor is performing the Work.

d. The Contractor must only use Canada's facilities and equipment for the performance of the Contract.

2.4. Personnel.

a. Personnel. The Contractor's personnel identified in the Contract to perform the Work must be competent and suitable for performing the Work and conduct themselves properly.

b. Replacement of Personnel. The Contractor must provide the services of the individuals identified in the Contract unless the Contractor is unable to do so for reasons beyond its control. If the Contractor is unable to provide the services of any personnel identified in the Contract, the Contractor must provide written notice to Canada of the intended replacement with similar qualifications and experience. The Contractor's written notice must include (i) the reason for the replacement, (ii) the name and qualifications of the replacement individual, and (iii) proof that the proposed replacement has the required security clearance from Canada. Any proposed replacements of personnel are subject to Canada's acceptance.

c. Replacements at Canada's Request. The Contracting Authority may order that an individual acting as a replacement stop performing the Work. In such a case, the Contractor must immediately comply with the order and arrange for a further replacement in accordance with the terms of "Replacement of Personnel" above. The fact that the Contracting Authority does not order that an individual identified in the Contract or a replacement stop performing the Work does not relieve the Contractor from its responsibility to meet the requirements of the Contract.

2.5. Subcontracts.

a. Subcontracting Requirements. The Contractor may subcontract the performance of the Work, provided:

i. the Contractor obtains the Contracting Authority's prior written consent;

ii. any subcontractor is bound by conditions compatible with the terms of the Contract and, in the opinion of the Contracting Authority, not less favourable to Canada than the conditions of the Contract, with the exception of requirements under the Federal Contractors Program for employment equity which only apply to the Contractor; and

iii. the Contractor remains liable to Canada for all the Work performed by the subcontractor.

b. Cases Where Consent for Subcontracting Not Required. The Contractor is not required to obtain consent for subcontracts specifically authorized in the Contract. The Contractor may also without the consent of the Contracting Authority:

i. purchase "off-the-shelf" items and any standard articles and materials ordinarily produced by manufacturers in the normal course of business;

ii. subcontract any incidental services that would ordinarily be subcontracted in performing the Work;

iii. subcontract any portion of the Work as is customary in the carrying out of similar Contracts, up to a total value of 40 percent of the Contract Price; and

- **iv.** permit its subcontractors at any tier to make purchases or subcontract as permitted in paragraphs (b)i), (b)ii), and (b)iii).

c. **Contractor Responsibilities.** Notwithstanding any subcontracting that is subject to Canada's consent, the Contractor is responsible for performing the Contract and Canada is not responsible to any subcontractor. The Contractor is responsible for any matters or things done or provided by any subcontractor under the Contract and for paying any subcontractors for any part of the Work they perform.

2.6. Specifications.

a. Canada owns all Specifications it provides the Contractor and the Contractor must only use them to perform the Work.

b. If Canada approves Specifications furnished by the Contractor, that approval will not relieve the Contractor if its responsibility to meet all requirements of the Contract.

3. Term of the Contract.

3.1. Contract Period. The period of the Contract is from the date of award shown on the front page of the Contract until October 9, 2026, inclusive.

4. Transportation.

4.1. Transportation Costs and Carrier Liability.

a. **Transportation Costs.** If transportation costs are payable by Canada under the Contract and the Contractor makes the transportation arrangements, the Contractor must ship using the most direct and economical means consistent with normal shipping practice. The Contractor must show these costs as a separate item on the invoice.

b. **Transportation Carriers' Liability.** The federal government's policy of underwriting its own risks precludes payment of insurance or valuation charges for transportation beyond the point at which ownership of goods passes to the federal government determined by the Incoterms applicable to the Contract. Where increased carrier liability is available without charge, the Contractor must obtain the increased liability for shipment.

5. Inspection and Acceptance.

5.1. Inspection, Rejection and Cure.

a. **Canada's Rights.** All the Work is subject to inspection and acceptance by Canada.

- **i.** **Inspection and Acceptance.** Canada has the right to inspect and accept all Work. Canada's inspection and acceptance of the Work by Canada do not relieve the Contractor of its responsibility for defects or other failures to meet the requirements of the Contract.
- **ii.** **Rejection and Cure.** If Canada rejects any Work, it may require the Contractor to correct or replace the Work at no additional cost.

b. **Contractor's Obligations.**

- **i.** **Access to Locations.** The Contractor must provide representatives of Canada access to all locations where any part of the Work is being performed at any time during working hours. Representatives of Canada may make examinations and such tests of the Work as they may think fit.

ii. **Assistance.** The Contractor must provide all assistance and facilities, test pieces, samples, and documentation that the representatives of Canada may reasonably require for the carrying out of the inspection. The Contractor must forward such test pieces and samples to such person or location as Canada specifies.
iii. **Contractor Inspection.** The Contractor must inspect and approve any part of the Work before submitting it for acceptance or delivering it to Canada.
iv. **Inspection Records.** The Contractor must keep accurate and complete inspection records that must be made available to Canada on request. Representatives of Canada may make copies and take extracts of the records during the performance of the Contract and for up to three years after the end of the Contract.

6. Basis of Payment.

6.1. Basis of Payment. Canada will pay the Contractor in accordance with the Basis of Payment included as Annex – Basis of Payment. Payment under this Contract, except advance payments, will be conditional on the performance, completion and delivery of the Work, or any part of the Work to the satisfaction of Canada.

7. Fees.

7.1. Limitation of Price. Canada will not pay the Contractor for any design changes, modifications or interpretations of the Work unless they have been approved, in writing, by the Contracting Authority before their incorporation into the Work.

8. Payments.

8.1. Invoices.

a. **Invoice Submission.** The Contractor must submit invoices for each delivery in accordance with the Contract. Each invoice must indicate whether it covers partial or final delivery.
b. **Invoice Details.** Invoices must show:
   i. the date, the name and address of the department, item or reference numbers, deliverable or description of the Work, and contract number;
   ii. details of expenditures (such as item, quantity, unit of issue, unit price, fixed time labour rates and level of effort, subcontracts, as applicable) in accordance with the Basis of Payment, exclusive of Applicable Taxes;
   iii. deduction for holdback, if applicable;
   iv. the extension of the totals, if applicable;
   v. if applicable, the method of delivery together with date, case numbers and part or reference numbers, shipment charges and any other additional charges; and
   vi. Applicable Taxes as a separate item along with corresponding registration numbers from the tax authorities. The Contractor must identify on all invoices all items that are zero-rated, exempt or to which Applicable Taxes do not apply.
c. **Payment of Taxes.** Canada will pay Applicable Taxes. It is the sole responsibility of the Contractor to charge Applicable Taxes at the correct rate. The Contractor must pay Applicable Taxes, ancillary taxes, and any commodity tax, on taxable goods or services used or consumed

in the performance of the Contract (in accordance with applicable legislation), including for material incorporated into real property.

- **d.** **Exemptions.** The Contractor is not entitled to use Canada's exemptions from any tax, such as provincial sales taxes, unless otherwise specified by law.
- **e.** **Withholding for Non-Residents.** Canada will withhold 15 percent of the amount to pay the Contractor in respect of services provided in Canada if the Contractor is not a resident of Canada unless the Contractor obtains a valid waiver from the Canada Revenue Agency.

8.2. Payment Period. Canada will pay the Contractor's undisputed invoice amount within 30 days after receipt of invoice in acceptable form and content. In the event an invoice is not of an acceptable form and content, Canada will notify the Contractor within 15 days of receipt, and the 30-day payment period will begin on receipt of a conforming invoice.

8.3. Late Payments.

- **a.** **Interest on Late Payments.** Canada will pay the Contractor simple interest at the Average Rate plus 3 percent per year on any amount that is Overdue, from the date that amount becomes Overdue until the day before the date of payment, inclusive. The Contractor is not required to provide notice to Canada for interest payable.
- **b.** **Exceptions.** Canada will pay interest only if Canada is responsible for the delay in paying the Contractor. Canada will not pay interest on Overdue advance payments.

8.4. Electronic Payment of Invoices. The Contractor accepts that Canada will use the following electronic payment instruments:

- **a.** Wire Transfer (International Only)

8.5. Right to Set-Off. When Canada makes a payment to the Contractor, Canada may deduct any amount payable to Canada by the Contractor under this or any other current contract.

9. Method of Payment.

9.1. Milestone Payment. Canada will pay the Contractor upon completion and delivery of the Work in accordance with the payment provisions of the Contract if:

- **a.** the Contractor has properly submitted an accurate and complete invoice along with any other necessary documents
- **b.** Canada has verified all such documents, and
- **c.** Canada has accepted the Work performed.

10. Ownership and Risk of Loss.

10.1. Ownership.

- **a.** **Transfer of Ownership to Canada.** Unless provided otherwise, the Work or any part of the Work belongs to Canada after acceptance by or on behalf of Canada.
- **b.** **Partial Payments.** However, if any payment is made to the Contractor for or on account of any work, either by way of progress or milestone payments, that work paid for by Canada belongs to Canada upon such payment being made. This transfer of ownership does not constitute acceptance by Canada of the Work or any part of the Work and does not relieve the Contractor of its obligation to perform the Work in accordance with the Contract.

10.2. Risk of Loss. Despite any transfer of ownership, the Contractor is responsible for any loss or damage the Contractor or its subcontractor causes to the Work or any part of the Work in accordance with the Contract.

10.3. Title. Upon transfer of ownership to the Work or any part of the Work to Canada, the Contractor must, if requested by Canada, establish to Canada's satisfaction that the title is free and clear of all claims, liens, attachments, charges or encumbrances. The Contractor must execute any conveyances and other instruments necessary to perfect the title that Canada may require.

11. Government Property.

11.1. Care of Property. The Contractor must take reasonable and proper care of all Government Property while it is in its possession or subject to its control. The Contractor is responsible for any loss or damage resulting from its failure to do so other than loss or damage caused by ordinary wear and tear.

11.2. Use of Property. The Contractor must use all Government Property solely for the purpose of the Contract and all Government Property remains the property of Canada. The Contractor must maintain adequate accounting records of all Government Property and, whenever feasible, mark it as being the property of Canada.

11.3. Return of Property. The Contractor must return all Government Property, unless the Contractor installs or incorporates it in the Work. All scrap and all waste materials, articles or things that are Government Property must, remain the property of Canada and must be disposed of only as directed by Canada.

11.4. Inventory of Property. At the time of completion of the Contract, and if requested by the Contracting Authority, the Contractor must provide Canada an inventory of all Government Property relating to the Contract.

12. Copyright.

12.1. Copyright. In this section, "Material" means anything the Contractor creates as part of the Work under the Contract or that the Contractor is to deliver under the Contract to Canada and in which copyright subsists. "Material" does not include anything created by the Contractor before the date of the Contract.

- **a. Copyright in Material.** Copyright in the Material belongs to Canada and the Contractor must include the copyright symbol and either of the following notice on the Material: © His Majesty the King in right of Canada (2026) or © Sa Majesté le Roi du chef du Canada (2026).
- **b. No Use of Material.** The Contractor must not use, copy, divulge, or publish any Material except as is necessary to perform the Contract.
- **c. Moral Rights.** The Contractor must provide Canada, at its request, with a written permanent waiver of moral rights, in a form acceptable to Canada, from every author that contributed to the Material. The Contractor permanently waives its moral rights in any Material of which it is the author.

13. Use and Translation of Written Material.

13.1. Translation of documentation. The Contractor agrees that Canada may translate in the other official language any documentation delivered to Canada by the Contractor that does not belong to Canada under the section entitled Copyright. The Contractor acknowledges that Canada owns the translation and that it is under no obligation to provide any translation to the Contractor. Canada agrees that any translation must include any copyright notice and any proprietary right notice that was part of the original. Canada acknowledges that the Contractor is not responsible for any technical errors or other problems that may arise as a result of the translation.

14. Confidentiality.

14.1. Confidentiality Obligations.

- **a. Contractor's Obligations.** The Contractor must keep confidential all information provided to the Contractor by or on behalf of Canada in connection with the Work. This includes any information that is confidential or proprietary to third parties, and all information conceived, developed or produced by the Contractor as part of the Work when copyright or any other intellectual property rights in such information belongs to Canada under the Contract. The Contractor must not disclose any such information without the written permission of Canada. The Contractor may disclose to a subcontractor any information necessary to perform a subcontract as long as the subcontractor agrees to keep the information confidential and the subcontractor only uses the information to perform a subcontract.
- **b. Canada's Obligations.** Subject to the *Access to Information Act* and to any right of Canada under the Contract to release or disclose, Canada agrees not to release or disclose outside the Government of Canada any information delivered to Canada under the Contract that is proprietary to the Contractor or a subcontractor.

14.2. Use Solely for the Purpose. The Contractor agrees to use any information provided to the Contractor by or on behalf of Canada only for the purpose of the Contract. The Contractor acknowledges that all this information remains the property of Canada or the third party, as the case may be.

14.3. Return of Information. The Contractor must deliver to Canada any such information, together with every copy, draft, working paper, and note that contains such information, upon completion or termination of the Contract or at such earlier time as Canada may require.

14.4. Non-Confidential Information. The obligations of the Parties set out in this section do not apply to any information if the information:

- **a.** is publicly available from a source other than the other Party; or
- **b.** is or becomes known to a Party from a source other than the other Party, except any source that is known to be under an obligation to the other Party not to disclose the information; or
- **c.** is developed by a Party without the use of the information of the other Party.

14.5. Marking. Wherever possible, the Contractor must mark or identify any proprietary information delivered to Canada under the Contract as "Property of [*Name of contractor inserted at contract award*]", permitted Government uses defined under Department of Foreign Affairs, Trade and Development contract number [*inserted at contract award*]. Canada will not be liable for any unauthorized use or disclosure of information that could have been so marked or identified and was not.

15. Data Protection and Privacy.

15.1. Protected Information.

- **a. Standard of Care.** If the Contract, the Work, or any confidential information is identified as TOP SECRET, SECRET, CONFIDENTIAL, PROTECTED, COSMIC TOP SECRET, NATO SECRET, NATO CONFIDENTIAL, or NATO RESTRICTED by Canada, the Contractor must at all times take all measures reasonably necessary for the safeguarding of the material so identified, including those set out in the PWGSC Contract Security Manual and its supplements and any other instructions issued by Canada.
- **b. Inspection.** If the Contract, the Work, or any information is identified as TOP SECRET, SECRET, CONFIDENTIAL, PROTECTED, COSMIC TOP SECRET, NATO SECRET, NATO CONFIDENTIAL, or NATO RESTRICTED by Canada, representatives of Canada are entitled to inspect the Contractor's premises and the premises of a subcontractor at any tier for security purposes at any time during the Contract Period. The Contractor must comply with, and ensure that any subcontractor complies with, all written instructions issued by Canada dealing with the material so identified, including any requirement that employees of the Contractor or of any subcontractor execute and deliver declarations relating to reliability screenings, security clearances and other procedures.

16. Access to Information.

16.1. Access to Information. Records created by the Contractor, and under the control of Canada, are subject to the Access to Information Act. The Contractor acknowledges the responsibilities of Canada under the Access to Information Act and must, to the extent possible, assist Canada in discharging these responsibilities. Furthermore, the Contractor acknowledges that section 67.1 of the Access to Information Act provides that any person, who destroys, alters, falsifies or conceals a record, or directs anyone to do so, with the intent of obstructing the right of access that is provided by the Access to Information Act is guilty of an offence and is liable to imprisonment or a fine, or both.

17. Accounts and Audit.

17.1. Accounts and Records.

- **a. Requirement to Keep Records.** The Contractor must maintain complete and accurate records of the estimated and actual cost of the Work, to enable Canada to determine whether the Contractor has performed the Work, the price charged for the Work is in accordance with the Contract terms and Canada has achieved best value.
- **b. Types of Records.** Such records include all tender calls, quotations, contracts, correspondence, source documents for accounting entries such as Excel or other spread sheets in numeric and machine readable form (not PDF copies), books and ledgers of initial accounting entries, work sheets, spreadsheets and other documentation supporting cost allocations, computations, reconciliations and assumptions made by the Contractor in relation to the Contract. The Contractor can only use copies if originals are unavailable due to unusual circumstances, such as fire, flood or theft.
- **c. Accounting System.** The Contractor must establish and maintain an accounting system that enables Canada to readily identify these records.

d. **Availability of Records.** The Contractor must make these records available on request, for examination by Canada, or by Canada's representatives during normal business hours at the Contractor's office or place of business. If no such location is available, then the Contractor must make financial records, with the supporting or underlying documents and records, available for examination at a time and location that is convenient for Canada.
e. **Retention of Records.** The Contractor must maintain such records, and Canada and its authorized representatives may examine such records, at all times during the period of this Contract and until the later of seven years after final payment and the settlement of all outstanding claims and disputes. Should an examination reveal any overpayments by Canada, these will be claimed by Canada and immediately repaid by the Contractor.
f. **Review by Canada.** Canada and its authorized representatives may examine, and make copies of, or extract from, all such records in whatever form they may be kept, relating to or pertaining to this Contract, including but not limited to those kept by the Contractor, its employees, agents, successors, and subcontractors.
g. **Full Compliance.** The Contractor must ensure that all subcontractors and affiliates comply with the requirements of this clause.

17.2. Time Records. If the Contract includes payment for time spent by the Contractor, its employees, representatives, agents or subcontractors performing the Work, the Contractor must keep a record of the actual time spent each day by each individual performing any part of the Work.

18. Insurance.

18.1. Insurance Requirements. The Contractor is responsible for deciding if insurance coverage is necessary to fulfill its obligations under the Contract and to ensure compliance with any applicable law. Any insurance acquired or maintained by the Contractor is at the Contractor's expense and for its own benefit and protection. It does not release the Contractor from or reduce its liability under the Contract.

19. Certifications and Additional Information.

19.1. Compliance with Certifications. Unless specified otherwise, the Contractor will be in default if it does not continuously comply with the certifications it provided in its offer or before contract award or if the Contractor does not provide evidence about its compliance when requested by the Contracting Authority. Canada may verify the Contractor's certifications throughout the Contract Period.

19.2. Compliance with Laws. The Contractor must comply with all laws applicable to the performance of the Contract. The Contractor must provide evidence of compliance with such laws to Canada at such times as Canada may reasonably request.

19.3. Compliance with Code of Conduct. The Contractor must comply with the Code of Conduct for Procurement.

19.4. Contingency Fees. The Contractor certifies and agrees that it has not paid and will not pay, directly or indirectly, any contingency fee for the solicitation, negotiation or obtaining of the Contract to any person (including, without limitation any individual who is required to file a return with the registrar pursuant to section 5 of the Lobbying Act), other than an employee of the Contractor acting in the normal course of the employee's duties. In this section:

- **a.** "contingency fee" means any payment or other compensation that depends or is calculated based on a degree of success in solicitating, negotiating or obtaining the Contract; and
- **b.** "person" included any individual who is required to file a return with the registrar pursuant to section 5 of the Lobbying Act 1985, c. 44 (4th Supplement).

19.5. No Bribe. The Contractor certifies that it has not and will not offer, promise, give or pay any bribe, gift, benefit, or other inducement directly or indirectly to any official or employee of Canada or to any member of their family, in order to influence the issuance or administration of the Contract.

19.6. No Influence; No Financial Interest. The Contractor must not influence, seek to influence, or otherwise take part in any decision of Canada that might further the Contractor's own interests. The Contractor must have no financial interest in the business of any third party that causes or would appear to cause a conflict of interest in connection with the performance of the Work. The Contractor must immediately declare any such financial interest to the Contracting Authority.

19.7. No Conflict. The Contractor warrants that, to the best of its knowledge after making diligent inquiry, no conflict exists or is likely to arise in its performance of the Contract. If the Contractor becomes aware of any matter that causes or is likely to cause such a conflict, the Contractor must immediately disclose it to the Contracting Authority. If the Contracting Authority is of the reasonable opinion that such a conflict exists, it may either (i) require the Contractor to take steps to deal with the conflict or (ii) terminate the Contract for default. In this section, "conflict" means any matter, circumstance, interest, or activity affecting the Contractor, its personnel, or its subcontractors, that may impair or may appear to impair its ability to perform the Work diligently and independently.

19.8. Ethics Codes for Public Service. The Contractor acknowledges that individuals who are subject to the provisions of the Conflict of interest Act, the Conflict of interest Code for Members of the House of Commons, the Values and Ethics Code for the Public Service or all other codes of values and ethics applicable within specific organizations cannot derive any direct or indirect benefit from the Contract.

19.9. Ineligibility and Suspension Policy Provisions. The Contractor must comply with the provisions of the Ineligibility and Suspension Policy and Directives, found on Public Works and Government Services Canada's website at Ineligibility and Suspension Policy.

19.10. Harassment in the Workplace.

- **a.** The Contractor acknowledges the responsibility of Canada to ensure, for its employees, a healthy work environment, free of harassment. A copy of the Directive on the Prevention and Resolution of Workplace Harassment and Violence, which also applies to the Contractor, is available on the Treasury Board Web site.
- **b.** The Contractor must not, either as an individual, or as a corporate or unincorporated entity, through its employees or subcontractors, harass, abuse, threaten, discriminate against or intimidate any employee, contractor or other individual employed by, or under contract with Canada. Canada will advise the Contractor in writing of any complaint and the Contractor will have the right to respond in writing. Upon receipt of the Contractor's response, the Contracting Authority will, at its entire discretion, make a determination regarding the validity of the complaint and decide on any action required.

19.11. Invoice Submittal Certification. By submitting an invoice, the Contractor certifies that the invoice is consistent with the Work delivered and is in accordance with the Contract.

20. Proactive Disclosure of Contracts with Former Public Servants.

20.1. Proactive Disclosure of Contracts with Former Public Servants. By providing information on its status, with respect to being a former public servant in receipt of a Public Service Superannuation Act (PSSA) pension, the Offeror has agreed that this information will be reported on departmental websites as part of the published proactive disclosure reports, in accordance with Contracting Policy Notice: 2019-01 of the Treasury Board Secretariat of Canada.

21. International Sanctions.

21.1. Sanctions Limitations. Canada cannot accept delivery of goods or services that originate, directly or indirectly, from the countries or persons subject to economic sanctions.

21.2. Contractor Obligations.

- **a.** The Contractor must:
  - **i.** not supply to the Government of Canada any goods or services that are subject to economic sanctions,
  - **ii.** comply with changes to the regulations imposed during the Contract Period, and
  - **iii.** immediately advise Canada if it is unable to perform the Work because of the imposition of economic sanctions against a country or person or the addition of a good or service to the list of sanctioned goods or services.
- **b.** If the Parties cannot agree on a workaround plan, Canada will terminate the Contract for convenience.

22. Termination and Suspension.

22.1. Termination for Convenience.

- **a. Right to Terminate.** Canada may terminate the Contract for convenience in whole or in part by giving written notice to the Contractor. The termination for convenience will take effect immediately or at the time specified in the termination notice.
- **b. Effect of Termination.** Upon termination for convenience of the Contract
  - **i.** the Contractor must comply with the requirements of the termination notice; or
  - **ii.** if Canada terminates the Contract in part only, the Contractor must proceed to complete any part of the Work that is not part of the termination notice.
- **c. Payments.** Canada will pay the Contractor
  - **i.** according to the Basis of Payment, for any part of the Work delivered, inspected, and accepted whether completed before, or after the termination in accordance with the Contract;
  - **ii.** Costs incurred by the Contractor plus a fair and reasonable profit thereon as determined by Canada in accordance with the profit provisions found in PWGSC Supply Manual section 10.65 Calculation of profit on negotiated contracts, for any part of the Work commenced, but not completed, before the date of the termination notice; and

- **iii.** Costs incidental to the termination of the Work incurred by the Contractor but not including the cost of severance payments or damages to employees whose services are no longer required, except wages that the Contractor is obligated by statute to pay.

d. Maximum Payment. The total of the amounts, which Canada may pay the Contractor under this section, together with any amounts paid, due or becoming due to the Contractor must not exceed the Contract Price. Canada may reduce the payment in respect of any part of the Work, if upon inspection, it does not meet the requirements of the Contract.

e. Acknowledgments.

- **i. Claims.** The Contractor will have no claim for damages, compensation, loss of profit, interest, allowance arising out of any termination notice given by Canada under this section except to the extent that this section expressly provides;
- **ii. Anticipated Profits.** The Contractor agrees that it is not entitled to any anticipated profit on any part of the Contract terminated; and
- **iii. Repayments.** The Contractor agrees to repay immediately to Canada the portion of any advance payment that is unliquidated at the date of the termination.

22.2. Termination on Default.

a. Right to Terminate. Canada may, by giving written notice to the Contractor, terminate the Contract or any part of the Contract if the Contractor

- **i.** fails to perform any term of the Contract, or
- **ii.** becomes bankrupt, makes an assignment for the benefit of creditors, or if a receiver is appointed under a debt instrument or a receiving order is made against the Contractor, or an order is made or a resolution passed for the winding-up of the Contractor.

b. Effect of Termination.

- **i.** For (a)(i) above, the termination will take effect immediately or at the expiration of a cure period specified in the notice, if the Contractor has not cured the default to the satisfaction of the Contracting Authority within that cure period.
- **ii.** For (a)(ii) above, the termination will take effect immediately.
- **iii. No Further Payment.** If Canada terminates the Contract for default, the Contractor will have no claim for further payment except as provided in this section.
- **iv. Payment of Outstanding Amounts.** The Contractor must immediately pay Canada any amounts paid by Canada, including milestone payments, and all losses and damages suffered by Canada because of the default or occurrence upon which the notice was based, including any increase in the cost incurred by Canada in procuring the Work from another source.
- **v. Refund of Advance Payments.** The Contractor agrees to repay immediately to Canada the portion of any advance payment that is unliquidated at the date of the termination.
- **vi. Maximum Payment.** The total amount paid by Canada under the Contract to the date of the termination and any amount payable under this subsection must not exceed the Contract Price.
- **vii. Completed Parts of the Work.** Upon termination of the Contract for default, the Contracting Authority may require the Contractor to deliver to Canada, in the manner and to the extent directed by the Contracting Authority, any completed parts of the Work, not delivered and accepted before the termination and anything the Contractor has acquired or produced specifically to perform the Contract. In such a case, subject to the deduction of

any claim that Canada may have against the Contractor arising under the Contract or out of the termination, Canada will pay or credit to the Contractor:

1. the value, of all completed parts of the Work delivered to and accepted by Canada, based on the Contract Price, including the proportionate part of the Contractor's profit or fee included in the Contract Price; and
2. the cost to the Contractor that Canada considers reasonable in respect of anything else delivered to and accepted by Canada.

c. **Termination in Error.** If the Contract is terminated for default, but it is later determined that grounds did not exist for a termination for default, the notice will be considered a notice of termination for convenience.

22.3. Suspension of the Work.

a. **Right to Suspend Work.** The Contractor must not suspend or stop work unless ordered by Canada. Canada may, by written notice, at any time, order the Contractor to suspend or stop the Work or part of the Work under the Contract for a period of up to 180 days. The Contractor must immediately comply with any such order in a way that minimizes the cost of doing so. While such an order is in effect, the Contractor must not limit access to any part of the Work without first obtaining the written consent of the Contracting Authority. Within this period, the Contracting Authority must either cancel the order or terminate the Contract in accordance with the Termination terms of the Contract.

b. **Effect of Suspension.** When Canada suspends the Work, Canada will pay the Contractor its additional costs incurred because of the suspension plus a fair and reasonable profit as determined by Canada in accordance with the Termination for Convenience clause of the Contract, unless the Contracting Authority terminates the Contract for default or the Contractor abandons the Contract.

c. **Resumption of Work.** When Canada cancels a suspension, the Contractor must resume work in accordance with the Contract as soon as practicable. If the suspension has affected the Contractor's ability to meet any delivery date under the Contract, the date for performing the part of the Work affected by the suspension will be extended for a period equal to the period of suspension plus a period, if any, that in the opinion of the Contracting Authority, following consultation with the Contractor, is necessary for the Contractor to resume the Work. Canada will make any equitable adjustments as necessary to any affected conditions of the Contract.

23. Remedies and Liabilities.

23.1. Liability.

a. **Exclusive Provision.** The Parties agree that no limitation of liability or indemnity provision applies to the Contract unless it is specifically incorporated in full text.

b. **Contractor Liability.** The Contractor is liable for any damage caused by the Contractor, its employees, subcontractors, or agents to Canada or any third party.

c. **Canada Liability.** Canada is liable for any damage caused by Canada, its employees, or agents to the Contractor or any third party.

d. **Damages.** Damage includes any injury to persons (including injury resulting in death) or loss of or damage to property (including real property) caused as a result of or during the performance of the Contract.

24. Intellectual Property Infringement and Royalties.

24.1. Third-Party Claims.

a. **Notification.** The Parties agree to immediately notify the other Party in the event a third party makes a claim against Canada or the Contractor concerning intellectual property infringement or royalties related to the Work.
b. **Defense.** Canada must control the defense of third-party intellectual property infringement or royalty claims or request that the Contractor defend Canada against the claim. In either case, the Contractor agrees to participate fully in the defence and any settlement negotiations and to pay all costs, damages and legal costs incurred or payable because of the claim, including the amount of any settlement.
c. **Settlement.** The Parties agree not to settle any claim unless the other Party first approves the settlement in writing.
d. **Exceptions.** The Contractor has no obligation regarding claims only made because:
   i. Canada modified the Work or part of the Work without the Contractor's consent or used the Work or part of the Work without following a requirement of the Contract; or
   ii. Canada used the Work or part of the Work with a product that the Contractor did not supply under the Contract (unless that use is described in the Contract or the manufacturer's specifications or other documentation); or
   iii. the Contractor used equipment, drawings, Specifications or other information supplied to the Contractor by Canada (or by someone authorized by Canada); or
   iv. the Contractor used a specific item of equipment or software that it obtained because of specific instructions from the Contracting Authority; however, this exception only applies if the Contractor has included the following language in its own contract with the supplier of that equipment or software: "(Name of Supplier) acknowledges that the purchased items will be used by the Government of Canada. If a third party claims that equipment or software supplied under the contract infringes any intellectual property right, (Name of Supplier), if requested to do so by either (Name of Contractor) or Canada, will defend both (Name of Contractor) and Canada against that claim at its own expense and will pay all costs, damages and legal fees payable as a result of that infringement." Obtaining this protection from the supplier is the Contractor's responsibility and, if the Contractor does not do so, it will be responsible to Canada for the claim.

24.2. Contractor Obligations.

a. If anyone claims that, as a result of the Work, the Contractor or Canada is infringing its intellectual property rights, the Contractor must immediately do one of the following:
   i. take whatever steps are necessary to allow Canada to continue to use the allegedly infringing part of the Work; or
   ii. modify or replace the Work to avoid intellectual property infringement, while ensuring that the Work continues to meet all the requirements of the Contract; or
   iii. take back the Work and refund any part of the Contract Price that Canada has already paid.
b. If the Contractor determines that none of these alternatives can reasonably be achieved, or if the Contractor fails to take any of these steps within a reasonable amount of time, Canada may choose either to require the Contractor to do (iii), or to take whatever steps are necessary

to acquire the rights to use the allegedly infringing part(s) of the Work itself, in which case the Contractor must reimburse Canada for all the costs it incurs to do so.

24.3. Damages Caused by Contractor. If Canada is required because of joint and several liability, to pay a third party in respect of damages caused by the Contractor, the Contractor must reimburse Canada any amount determined by a final judgment of a court of competent jurisdiction or by arbitration to be the Contractor's portion of the damages to the third party.

25. General Provisions.

25.1. Status of Contractor. The Contractor is an independent contractor engaged by Canada to perform the Work. The Contract does not create a partnership, a joint venture or an agency between Canada and the other Party or Parties. The Contractor must not represent itself as an agent or representative of Canada to anyone. Neither the Contractor nor any of its personnel are an employee or agent of Canada. The Contractor is responsible for all deductions and remittances required by law in relation to its employees.

25.2. Entire Agreement. The Contract and the offer document are the entire agreement between the Parties and supersedes all previous negotiations, communications and agreements.

25.3. Amendment.

- **a.** Amendments to the Contract must be in writing and signed by the Parties.
- **b.** While the Contractor may discuss any proposed modifications to the Work with other representatives of Canada, Canada will not be responsible for the cost of any modification unless it has been incorporated into the Contract in writing and signed by the Parties.

25.4. Counterparts. The Parties may execute the Contract in several counterparts, each of which is an original and all of which constitute one single agreement between the Parties.

25.5. Assignment.

- **a.** The Contractor may only assign this agreement if
  - **i.** Canada agrees to the assignment in writing; and
  - **ii.** the Contractor remains responsible for the assignee's performance.
- **b.** The assignment will be effective upon execution of an assignment agreement signed by the Parties and the assignee.

25.6. Successors and Assigns. The Contract is to the benefit of and binds the successors and permitted assignees of Canada and of the Contractor.

25.7. Notice. All notices or other communications required or permitted by the Contract must be in writing and delivered to the Contracting Authority for Canada and the Contractor's Representative for the Contractor. Any notice is effective on the day received.

25.8. Applicable Laws. The laws in force in Ontario, Canada will govern the Contract and the relations between the Parties and be used to interpret the Contract. The Contractor must comply with all laws applicable to the performance of the Contract and provide evidence of compliance with those laws to Canada if requested by the Contracting Authority.

25.9. Dispute Resolution.

- **a. Open Communication Between Parties.** The Parties agree to maintain open and honest communication about the Work during and after the period of the Contract.
- **b. Parties' Cooperation.** The Parties agree to consult and co-operate with each other to further the objectives of the Contract. They will promptly notify each other of, and attempt to resolve, any problems or differences that may arise.
- **c. Alternative Dispute Resolution.** If the Parties cannot resolve a dispute through consultation and cooperation, they will consult a neutral third party that offers alternative dispute resolution services.
- **d. Dispute Resolution Options.** Parties can find alternative dispute resolution options on Canada's Buy and Sell website under the heading "Dispute Resolution".

25.10. Powers of Canada. All rights, remedies, powers and discretions granted or acquired by Canada under the Contract or by law are cumulative, not exclusive.

25.11. Time of the Essence. It is essential that the Contractor deliver or perform the Work within or at the time stated in the Contract.

25.12. Excusable Delay.

- **a. Definition of Excusable Delay.** A delay in the performance by the Contractor or Canada of any obligation under the Contract that is caused by an event that
  - **i.** is beyond the reasonable control of the party,
  - **ii.** could not reasonably have been foreseen,
  - **iii.** could not reasonably have been prevented by means reasonably available to the party, and
  - **iv.** occurred without the fault or neglect of the party, is an "Excusable Delay" if the party advises the other party's Contracting Authority or the Contractor's Representative of the occurrence of the delay or of the likelihood of the delay as soon as the party becomes aware of it. The party must also advise the other, within 15 Business Days, of all the circumstances relating to the delay and provide to the Contracting Authority or Contractor's Representative for approval a clear workaround plan explaining in detail the steps that the Contractor proposes to take in order to minimize the impact of the event causing the delay.
- **b. Postponement of Delivery.** Either party will postpone for a reasonable time any delivery date or another date directly affected by an Excusable Delay. Any postponement will not exceed the duration of the Excusable Delay.
- **c. Right to Terminate.** However, if an Excusable Delay has continued for 30 days or more, the party may terminate the Contract on written notice to the other party. In such a case, the Parties agree that neither will make any claim against the other for damages, costs, expected profits or any other loss arising out of the termination or the event that contributed to the Excusable Delay. The Contractor agrees to repay immediately to Canada the portion of any advance payment that is unliquidated at the date of the termination.
- **d. Liability for Costs Incurred.** Unless Canada has caused the delay by failing to meet an obligation under the Contract, Canada will not be responsible for any costs incurred by the Contractor or any of its subcontractors or agents because of an Excusable Delay.
- **e. Delivery of Completed Work.** If Canada terminates the Contract under this section, the Contracting Authority may require the Contractor to deliver to Canada, in the manner and to

the extent directed by the Contracting Authority, any completed parts of the Work not delivered and accepted before the termination and anything that the Contractor has acquired or produced specifically to perform the Contract. Canada will pay the Contractor:

i. the value, of all completed parts of the Work delivered to and accepted by Canada, based on the Contract Price, including the proportionate part of the Contractor's profit or fee included in the Contract Price; and

ii. the Cost to the Contractor that Canada considers reasonable in respect of anything else delivered to and accepted by Canada.

f. **Total Payments.** The total amount paid by Canada under the Contract to the date of termination and any amounts payable under this subsection must not exceed the Contract Price.

25.13. Waiver.

a. A waiver will only be valid if made in writing by the affected Party’s representative. A Party's failure to enforce any rights under the Contract will be neither treated nor interpreted as a waiver of that Party's rights.

b. The waiver by a Party of a breach of any condition of the Contract will not be treated or interpreted as a waiver of any subsequent breach and therefore will not prevent that Party from enforcing of that term or condition in the case of a subsequent breach.

25.14. Severability. If a court of competent jurisdiction declares any provision of the Contract unenforceable, illegal, or invalid, the remainder of the Contract remains in force.

25.15. Priority of Documents. If there is a conflict between the wording of any documents that appear on the list, the wording of the document that first appears on the list has priority over the wording of any document that subsequently appears on the list:

a. these Articles of Agreement;
b. Annex Contract Definitions;
c. Annex Solicitation of Offers Definitions;
d. Annex Statement of Work;
e. Annex Basis of Payment;
f. Annex Security Requirements Check List
g. the Contractor's offer dated yyyy-mm-dd. *(inserted at Contract award)*

25.16. Survival. All the Parties' obligations of confidentiality, any representations and warranties set out in the Contract as well as the provisions, which by their nature might reasonably be expected to survive, will survive the expiry or termination of the Contract.

26. Authorities.

26.1. Contracting Authority.

a. The Contracting Authority for the Contract is: (*inserted at Contract award)*
Tel.:
E-mail:
Address:
Department Name: Foreign Affairs and Trade Development Canada

b. The Contracting Authority is responsible for the management of the Contract and must authorize in writing any changes to the Contract. The Contractor must not perform work in excess of or outside the scope of the Contract based on verbal or written requests or instructions from anybody other than the Contracting Authority.

26.2. Project Authority.

a. The Project Authority for the Contract is: (*inserted at Contract award)*
Tel:
E-mail:
Address:
Department Name: Foreign Affairs and Trade Development Canada

b. The Work is for a department or agency. The Project Authority represents that department or agency. The Project Authority is responsible for all matters concerning the technical content of the Work under the Contract. The Contractor may discuss technical matters with the Project Authority, however the Project Authority has no authority to authorize changes to the scope of the Work. Only the Contracting Authority can issue a contract amendment to make changes to the scope of the Work.

26.3. Contractor's Representative.

a. The Contractor's Representative for the Contract is: (*inserted at Contract award)*
Tel:
E-mail:
Address:

Annex - Solicitation of Offers - Definitions

In this solicitation of offers, unless the context otherwise requires, the following terms have the following meanings.

"Articles of Agreement" means the clauses and conditions incorporated in full text to form the body of the Contract; it does not include the annexes, the Contractor's offer or any other document;

"Canadian Good" means a good that is wholly manufactured or originated in Canada. Canada may also consider a product that contains imported components to be a Canadian Good for the purpose of the Canadian Content Policy when it has undergone sufficient change in Canada in a manner that satisfies the definition specified under the Canada-United States-Mexico Agreement (CUSMA) Rules of Origin. For the purposes of this determination, the reference in the CUSMA Rules of Origin to "territory of one or more of the Parties" is replaced with "Canada". (Consult Section 3.130 and Annex 3.6 of the Supply Manual for further information.)

"Canadian Service" means a service provided by an individual based in Canada. If a requirement consists of only one service provided by two or more individuals, Canada will consider the service to be a Canadian Service if a minimum of 80 percent of the total offer price for the service is provided by individuals based in Canada.

"Variety of Goods" means that if a requirement consists of more than one good, Canada will apply one of the following methods:

a. Aggregate evaluation: No less than 80 percent of the total offer price must consist of Canadian Goods, or

b. Item-by-item evaluation: In some cases, Canada may conduct the offer evaluation on an item-by-item basis and enter into contracts with more than one Offeror. In such a case, Canada will ask the Offeror to identify separately each item that meets the definition of Canadian Goods.

"Variety of Services" means that if a requirement consists of more than one service, a minimum of 80 percent of the total offer price must be provided by individuals based in Canada.

"Mix of Goods and Services" means that if a requirement consists of a mix of goods and services, no less than 80 percent of the total offer price must consist of Canadian Goods and Canadian Services.

For more information on how to determine the Canadian Content for a mix of goods, a mix of services or a mix of goods and services, consult Annex 3.6, Example 2, of the Supply Manual.

"Other Canadian Goods and Services" means Canada may consider textiles to be Canadian Goods according to a modified rule of origin, copies of which are available from the Clothing and Textiles Division, Commercial and Consumer Products Directorate.

"**Client**" means the department or agency for which the Work is performed;

"**Canada's Representative**" or "**Contracting Authority**" means the person designated by that title in the Contract, or by notice to the Contractor, to act as Canada's agent and representative for the purposes of this Contract;

"**Non-Responsive**" means instances where the offer has not fulfilled the requirements and applied the instructions of the solicitation of offers. For example, an offer that is submitted past the Closing Date and Time is non-responsive.

"**Contract**" means the contract made as a result of the solicitation of offers process.

"**Contractor**" means the person, entity or entities named in the Contract to supply goods, services, or both to Canada;
"**Contract Price**" means the amount stated in the Contract to be payable to the Contractor for the Work, exclusive of Applicable Taxes;
"**Cost**" means cost determined according to Contract Cost Principles 1031-2 as revised to the date of the solicitation of offers or, if there was no solicitation of offers, the date of the Contract;
"**Date of payment**" means the date of the negotiable instrument drawn, or electronic transfers made by the Receiver General for Canada to pay any amount under the Contract;
"Excluded Material" refers to packaging tape - environmentally preferable material alternatives for packaging tape are not widely available. As a result, packaging tape is excluded from the environmentally preferable packaging specifications until the market has progressed and studies become available to determine otherwise;
"**Former Public Servant**" is any former member of a department as defined in the Financial Administration Act, R.S., 1985, c. F-11, a former member of the Canadian Armed Forces or a former member of the Royal Canadian Mounted Police. A former public servant may be:
(a) an individual;
(b) an individual who has incorporated;
(c) a partnership made of former public servants; or
(d) a sole proprietorship or entity where the affected individual has a controlling or major interest in the entity;
"**Joint Venture**" means an association of two or more Parties who combine their money, property, knowledge, expertise or other resources in a single joint business enterprise, sometimes referred as a consortium, to offer together on a requirement;
"**Lump Sum Payment**" means the payment which has been made to facilitate the transition to retirement or to other employment as a result of the implementation of various programs to reduce the size of the Public Service. The lump sum payment period does not include the period of severance pay, which is measured in a like manner;
"**Net-Zero Challenge or Equivalent**" means the following accepted initiatives are deemed equivalents to the Net-Zero Challenge, 'United Nations Race to Zero' or 'Science-Based Targets Initiative (SBTI)' or 'Carbon Disclosure Project (CDP)' or 'International Organization for Standardization (ISO) – ISO 14064-1:2018'
"**Offeror**" means the person or entity (or, in the case of a Joint Venture, the persons or entities) submitting an offer. An Offeror can be a sole proprietorship, corporation, a partnership, a Joint Venture or a natural person. It does not include the parent, subsidiaries or other affiliates of the Offeror, or its subcontractors;
"Packaging" means product to be used for the containment, protection, handling, delivery, storage, transport and presentation of goods. (Source: ISO 21067-1:2016, Clause 2.1.1);
"**Party**" means Canada, the Contractor, or any other signatory to the Contract, and "**Parties**" means all of them;
"**Pension**" means a pension or annual allowance paid under the Public Service Superannuation Act (PSSA), R.S., 1985, c. P-36, and any increases paid pursuant to the Supplementary Retirement Benefits

Act, R.S., 1985, c. S-24 as it affects the PSSA. It does not include pensions payable pursuant to the Canadian Forces Superannuation Act, R.S., 1985, c. C-17, the Defence Services Pension Continuation Act, 1970, c. D-3, the Royal Canadian Mounted Police Pension Continuation Act, 1970, c. R-10, and the Royal Canadian Mounted Police Superannuation Act, R.S., 1985, c. R-11, the Members of Parliament Retiring Allowances Act, R.S. 1985, c. M-5, and that portion of pension payable to the Canada Pension Plan Act, R.S., 1985, c. C-8;

"Recyclable" means capable of being diverted from the waste stream through available processes and programs and can be collected, sorted, processed and returned to use in the form of raw materials or products. (Source: CAN/CSA-ISO 14021, Clause 7.7.1);

"Recyclable packaging" means packaging or a packaging component is recyclable if its successful post consumer collection, sorting, and recycling is proven to work in practice and at scale. This means that there is an existing (collection, sorting and recycling) system in place that actually recycles the packaging and that covers significant and relevant geographical areas as measured by population size. (Source: adapted from the New Plastics Economy Global Commitment);

"Non-Responsive" means instances where an offer has not responded to the requirement. For example, an offer that does not pass the technical evaluation is non-responsive.

"Returnable (to the Contractor)" means there is an existing and functional program in place for the packaging to be returned to the Contractor to reuse, refill, or recycle at no additional cost to the client;

"Reusable (by Canada)" means designed to be used multiple times for the same purpose without losing its original functionality, physical capability or quality. A characteristic of a product or packaging that has been conceived and designed to accomplish within its life cycle a certain number of trips, rotations or uses for the same purpose for which it was conceived. (Source: CAN/CSA-ISO 14021, Clause 7.12.1.1);

"**Security Deposit**" means (a) a bill of exchange that is payable to the Receiver General for Canada and certified by an approved financial institution or drawn by an approved financial institution on itself; or (b) a government guaranteed bond; or (c) an irrevocable standby letter of credit, or (d) such other security as may be considered appropriate by the Contracting Authority and approved by Treasury Board;

"**Approved Financial Institution**" means (a) any corporation or institution that is a member of the Canadian Payments Association (Payments Canada); (b) a corporation that accepts deposits that are insured by the Canada Deposit Insurance Corporation or the Régie de l'assurance-dépôts du Québec to the maximum permitted by law; (c) a credit union as defined in paragraph 137(6) of the Income Tax Act; (d) a corporation that accepts deposits from the public, if repayment of the deposits is guaranteed by a Canadian province or territory; or (e) the Canada Post Corporation;

"**Government-guaranteed Bond**" means a bond of the Government of Canada or a bond unconditionally guaranteed as to principal and interest by the Government of Canada that is: (a) payable to bearer; (b) accompanied by a duly executed instrument of transfer of the bond to the Receiver General for Canada in accordance with the Domestic Bonds of Canada Regulations; (c) registered in the name of the Receiver General for Canada;

"Specialized packaging" means packaging can be considered "specialized" if the intended use of the packaging requires technical performance specifications with no environmentally preferable alternatives.

For example, when transporting hazardous materials, if there is a need for a specific density of materials, or if they must be temperature controlled;
"**Specifications**" means the description of the essential, functional, or technical requirements of the Work in the Contract, including the procedures for determining whether the requirements have been met;
"Work" means all the activities, services, goods, equipment, matters and things required to be done, delivered or performed by the Contractor under the Contract.

Annex - Contract Definitions

In the Contract, unless the context otherwise requires, the following terms have the following meanings.

"**Applicable Taxes**" means the Goods and Services Tax (GST), the Harmonized Sales Tax (HST), and any provincial tax, by law, payable by Canada.

"Articles of Agreement" means the clauses and conditions incorporated in full text to form the body of the Contract; it does not include the annexes, the Contractor's offer or any other document.

"**Average Rate**" means the simple arithmetic mean of the Bank Rates in effect at 4:00 p.m. Eastern Time each day during the calendar month immediately before the calendar month in which payment is made.

"**Bank Rate**" means the rate of interest established from time to time by the Bank of Canada as the minimum rate at which the Bank of Canada makes short term advances to members of the Canadian Payments Association.

"**Canada**", "**His Majesty**" or "**the Government**" means His Majesty the King in right of Canada as represented by the Minister of the Department of Foreign Affairs, Trade and Development and any other person duly authorized to act on behalf of that minister or, if applicable, an appropriate minister to whom the Minister of the Department of Foreign Affairs, Trade and Development has delegated his or her powers, duties or functions and any other person duly authorized to act on behalf of that minister.

"Canadian Good" means a good that is wholly manufactured or originated in Canada. Canada may also consider a product that contains imported components to be a Canadian Good for the purpose of the Canadian Content Policy when it has undergone sufficient change in Canada in a manner that satisfies the definition specified under the Canada-United States-Mexico Agreement (CUSMA) Rules of Origin. For the purposes of this determination, the reference in the CUSMA Rules of Origin to "territory of one or more of the Parties" is replaced with "Canada". (Consult Section 3.130 and Annex 3.6 of the Supply Manual for further information.)

"Canadian Service" means a service provided by an individual based in Canada. If a requirement consists of only one service provided by two or more individuals, Canada will consider the service to be a Canadian Service if a minimum of 80 percent of the total offer price for the service is provided by individuals based in Canada.

"Variety of Goods" means that if a requirement consists of more than one good, Canada will apply one of the following methods:

a. Aggregate evaluation: No less than 80 percent of the total offer price must consist of Canadian Goods, or

b. Item-by-item evaluation: In some cases, Canada may conduct the offer evaluation on an item-by-item basis and enter into contracts with more than one Offeror. In such a case, Canada will ask the Offeror to identify separately each item that meets the definition of Canadian Goods.

"Variety of Services" means that if a requirement consists of more than one service, a minimum of 80 percent of the total offer price must be provided by individuals based in Canada.

"Mix of Goods and Services" means that if a requirement consists of a mix of goods and services, no less than 80 percent of the total offer price must consist of Canadian Goods and Canadian Services.

For more information on how to determine the Canadian Content for a mix of goods, a mix of services or a mix of goods and services, consult Annex 3.6, Example 2, of the Supply Manual.

"Other Canadian Goods and Services" means Canada may consider textiles to be Canadian Goods according to a modified rule of origin, copies of which are available from the Clothing and Textiles Division, Commercial and Consumer Products Directorate.
"**Contract**" means the Articles of Agreement, the terms and conditions, annexes and any other document specified or referred to as forming part of the Contract, all as amended by agreement of the Parties from time to time.
"**Contractor**" means the person, entity or entities named in the Contract to supply goods, services or both to Canada.
"**Contract Price**" means the amount stated in the Contract to be payable to the Contractor for the Work, exclusive of Applicable Taxes.
“**Contract Period**” means the entire period of time during which the Contractor is obliged to perform the Work, which includes initial Contract Period and the period during which the Contract is extended, if Canada chooses to exercise any options set out in the Contract.
"**Cost**" means cost determined according to Contract Cost Principles 1031-2 as revised to the date of the solicitation of offers or, if there was no solicitation of offers, the date of the Contract.
"**Date of payment**" means the date of the negotiable instrument drawn by the Receiver General for Canada to pay any amount under the Contract.
“Excluded Material” refers to packaging tape - environmentally preferable material alternatives for packaging tape are not widely available. As a result, packaging tape is excluded from the environmentally preferable packaging specifications until the market has progressed and studies become available to determine otherwise.
"**Government Property**" means anything supplied to the Contractor by or on behalf of Canada for the purposes of performing the Contract and anything acquired by the Contractor in any manner in connection with the Work, the cost of which is paid by Canada under the Contract.
“Net-Zero Challenge or Equivalent” means the following accepted initiatives are deemed equivalents to the Net-Zero Challenge, ‘United Nations Race to Zero’ or ‘Science-Based Targets Initiative (SBTI)’ or ‘Carbon Disclosure Project (CDP)’ or ‘International Organization for Standardization (ISO) – ISO 14064-1:2018’
"**Overdue**" means an amount that is unpaid on the first day following the day on which it is due and payable according to the Contract.
“Packaging” means product to be used for the containment, protection, handling, delivery, storage, transport and presentation of goods. (Source: ISO 21067-1:2016, Clause 2.1.1).
"**Party**" means Canada, the Contractor, or any other signatory to the Contract and "**Parties**" means all of them.
“Recyclable” means capable of being diverted from the waste stream through available processes and programs and can be collected, sorted, processed and returned to use in the form of raw materials or products. (Source: CAN/CSA-ISO 14021, Clause 7.7.1).
“Recyclable packaging” means packaging or a packaging component is recyclable if its successful post consumer collection, sorting, and recycling is proven to work in practice and at scale. This means that there is an existing (collection, sorting and recycling) system in place that actually recycles the packaging

and that covers significant and relevant geographical areas as measured by population size. (Source: adapted from the New Plastics Economy Global Commitment).
"Returnable (to the Contractor)" means there is an existing and functional program in place for the packaging to be returned to the Contractor to reuse, refill, or recycle at no additional cost to the client.
"Reusable (by Canada)" means designed to be used multiple times for the same purpose without losing its original functionality, physical capability or quality. A characteristic of a product or packaging that has been conceived and designed to accomplish within its life cycle a certain number of trips, rotations or uses for the same purpose for which it was conceived. (Source: CAN/CSA-ISO 14021, Clause 7.12.1.1).
"**Security Deposit**" means (a) a bill of exchange that is payable to the Receiver General for Canada and certified by an approved financial institution or drawn by an approved financial institution on itself; or (b) a government guaranteed bond; or (c) an irrevocable standby letter of credit, or (d) such other security as may be considered appropriate by the Contracting Authority and approved by Treasury Board.
"**Approved Financial Institution**" means (a) any corporation or institution that is a member of the Canadian Payments Association (Payments Canada); (b) a corporation that accepts deposits that are insured by the Canada Deposit Insurance Corporation or the Régie de l'assurance-dépôts du Québec to the maximum permitted by law; (c) a credit union as defined in paragraph 137(6) of the Income Tax Act; (d) a corporation that accepts deposits from the public, if repayment of the deposits is guaranteed by a Canadian province or territory; or (e) the Canada Post Corporation.
"**Government-guaranteed Bond**" means a bond of the Government of Canada or a bond unconditionally guaranteed as to principal and interest by the Government of Canada that is: (a) payable to bearer; (b) accompanied by a duly executed instrument of transfer of the bond to the Receiver General for Canada in accordance with the Domestic Bonds of Canada Regulations; (c) registered in the name of the Receiver General for Canada.
"Specialized packaging" means packaging can be considered "specialized" if the intended use of the packaging requires technical performance specifications with no environmentally preferable alternatives. For example, when transporting hazardous materials, if there is a need for a specific density of materials, or if they must be temperature controlled.
"**Specifications**" means the description of the essential, functional or technical requirements of the Work in the Contract, including the procedures for determining whether the requirements have been met.
"**Work**" means all the activities, services, goods, equipment, matters and things that the Contractor is required to do, deliver or perform under the Contract.

Annex – Statement of Work

FDI Matchmaking at MSPO 2026 in Kielce, Poland from September 7-11, 2026

1. INTRODUCTION

TGP, Global Affairs Canada (GAC)'s Investment Promotion Division (legal name: Department of Foreign Affairs, Trade and Development Canada), plans to host a Foreign Direct Investment (FDI) promotion and outreach program at the International Defence Industry Exhibition (MSPO 2026), to be held in Kielce, Poland, from September 7 to 11, 2026, at the Targi Kielce exhibition centre. The purpose of the program will be to attract FDI into Canadian municipalities and provinces.

The program will include a Canadian delegation composed of senior executives and investment attraction advisors from Economic Development Organizations (EDOs) in Canadian provinces, municipalities and cities, as well as senior investment officials from Canadian Embassies, High Commission, and Consulates located in cities across Europe.

In this regard, TGP is seeking the services of a service provider specializing in the identification of investment prospects with strong expertise in the European defence and security market. The service provider will recruit targeted companies interested in establishing and expanding their operations in Canada, for a series of business-to-business (B2B) matchmaking meetings with the Canadian EDO delegates. The planned B2B meetings will take place throughout MSPO 2026 at the Canada Pavilion or companies' booths, should they exhibit at the trade show.

2. BACKGROUND

The International Defence Industry Exhibition (MSPO) is Europe's third-largest defence and security trade show, and the flagship defence event in Central and Eastern Europe. Participants are expected from across the region, NATO partner markets, and globally. Held annually, the 2026 edition is expected to be the largest yet featuring:

- more than 40,000 visitors
- more than 900 exhibitors
- more than 60 official delegations
- 2 new exhibition halls

In 2026, Canada will be the lead nation, offering:

- enhanced visibility and space for exhibiting Canadian companies to showcase their solutions
- increased access to decision makers and buyers for participating Canadian companies and partners

TGP's FDI Matchmaking program at MSPO builds on the lead nation activities organized by GAC, extending FDI-specific programming to participating Canadian municipalities and provinces (referred to hereafter as EDOs).

Given the importance of the defence and security industries and Canada's strategy to build capacity in these sectors, MSPO 2026 provides an ideal platform for investor outreach aimed at raising Canada's profile as a destination of choice for business and investment and to highlight Canada's competitive advantages to potential investors.

3. OBJECTIVES

TGP is seeking the services of a lead generator (the "Contractor") with substantial expertise and contacts in the European defence and security ecosystem to recruit qualified companies to participate in business meetings with members of the Canadian delegation and if applicable, encourage them to attend networking events during MSPO 2026. B2B meetings with companies based outside Europe are welcome, should the firms have the capacity and intention to invest in Canada.

The Contractor will be responsible for facilitating lead generation and matchmaking activities, focusing on all aspects of coordinating and scheduling B2B meetings for the Canadian delegation with high-potential companies in the defence and security industries at MSPO 2026.

TGP will benefit from the in-depth market knowledge and experience of the local contractor, based on effective support and research.

- **Knowledge**: The Contractor has in-house knowledge of the European defence and security markets, and experience in implementing tactical B2B investor matchmaking programs for other investment promotion agencies.
- **Network**: The Contractor has a strong network of local resources and maintains close relationships with companies and organizations from multiple sectors and industries in European markets. The Contractor maintains an exceptionally strong network within the European defence & security markets. An established network of global defence and security contacts shall be considered an asset.
- **Flexibility**: During the B2B recruitment process, the Contractor is able to provide advice and recommendations on how and when TGP should adapt to any changing situation, to ensure that contract objectives are met.
- **Efficiency and communication**: The work will be carried out by experienced in-house consultants. We require at least two trained full-time consultants with excellent ability to work, speak and write in English to support the program. Proficiency in French and Polish is considered an asset.

Through this FDI matchmaking program, foreign business leaders will be connected to Canada’s vibrant defence and security ecosystem, thus fostering new ventures, generating jobs, and driving economic growth.

4. SCOPE OF WORK

4.1 B2B Meetings

The Contractor will recruit targeted and qualified company prospects and coordinate the scheduling of B2B meetings between these targeted companies and members of the Canadian delegation. Meetings will take place throughout MSPO 2026, either at the Canada pavilion or at the booths of companies exhibiting at the show.

These qualified leads, which will be drawn primarily from across the **European defence and security ecosystem** (but possibly from outside of Europe), must demonstrate both the interest and the capacity to either pursue greenfield investments in Canada, expand their existing facilities in Canada, invest in R&D opportunities/partnerships in Canada, and/or pursue any other relevant investment types aligned with the EDO's value proposition. For specific country markets, especially those with state-owned defence and security enterprises, foreign government officials may be targeted for meetings as well, with approval from TGP. The Contractor will ensure a high-quality matchmaking experience for all participants.

The work will involve researching, identifying, and generating a Microsoft Excel list of potential companies and inviting representative(s) of these companies to participate in meetings with EDOs. The Contractor will pre-qualify these companies and execute a proactive outreach campaign—via email, direct messaging and phone—to recruit company participants, assess their investment plans, capacity, and location requirements, and secure as many quality meetings as possible. **<u>It is expected to schedule a minimum of three (3) B2B meetings per Canadian municipality/province in attendance, for an estimated fifteen (15) provinces/cities.</u>** There is no minimum number of meetings to schedule for each investment officer participating from a European Embassy, High Commission, or Consulate.

Note: Bidders will be evaluated on their ability to secure a higher number of potential investors and a higher number of quality meetings with genuine intent to explore foreign direct investment in Canada.

4.2 Additional parameters for companies participating in the FDI matchmaking program:
To ensure the quality and relevance of B2B meetings for EDO representatives, companies recruited must meet the following criteria:

- **Inclusions**
  - **Company size**: minimum 25 employees, although smaller businesses with high potential may be considered (i.e., high growth startups) upon consultation with TGP
  - **Expansion plan:** Have the willingness and ability to make a new investment within the next 2-3 years in Canada or North America or expand their existing footprint in Canada.
  - **Project scope**: Propose investments that are likely to generate CAPEX expenditure and create at least 5 jobs in the first 12 months of implementation
  - **Level of representation**: Decision makers and C-level senior managers/executives

- **Exclusions**
  - Avoid businesses primarily engaged in business development/sales or finding customers in Canada
  - Avoid early-stage start-ups that lack the capacity for international expansion
  - Consultants, law and accounting firms, and other intermediaries representing potential investors are <u>not</u> considered targets for B2B meetings

  - The investment project must go beyond a simple sales office

5. TASKS AND DELIVERABLES

5.1 Initial Outreach and Engagement [Deliverable 1]

- Review the documents on the participating EDOs that will be provided by TGP.
- Provide TGP link to booking calendar for Canadian delegation to reserve/book date and time for one-on-one calls with the Contractor, suitable to Canadian time zones, by June 1, 2026.
- Conduct one-on-one calls with each EDO to gain first-hand understanding of their unique investment value propositions and objectives at MSPO 2026, by June 12, 2026. These calls will enable the Contractor to schedule meetings that are most relevant for each EDO.
- Conduct subsequent calls with the EDOs as necessary to exchange more information and updates, with the aim of optimizing matchmaking results.
- Contact defence and security companies.
- Provide recommendations to TGP on the best approach to B2B recruitment to identify the most beneficial matches from the perspectives of the Canadian EDO delegates and the target companies.

5.2 Target Lists [Deliverable 2]

- Pre-screen potential defence and security companies to take part in B2B meetings with Canadian cities/provinces.
- Generate a list of high-potential target companies and executives for review and validation by TGP and ranking by Canadian EDO delegates. This list should include company profiles and contact information (Title or honorific, first name, surname, job title, company name, company profile (no more than fifty words), mobile number and email. The list should be provided to TGP by June 5, 2026, for completion of review and ranking by June 12, 2026.
- Canadian EDO delegates will rank target companies based on a priority system.
  - **Rank 1**: High priority - Definitely want to meet with these companies.
  - **Rank 2**: Medium priority - May want to meet with these companies.
  - **Rank 3**: Low priority - Are not particularly interested but are open to meeting.
  - **Rank 4**: No interest - Are not interested in meeting with these companies.
- Provide subsequent updated curated lists of target companies and executives as they become available for continuous validation and ranking.

5.3 Market Briefing [Deliverable 3]

- Deliver a virtual pre-event market briefing coordinated by TGP to Canadian EDO delegates at least two (2) weeks prior to the event. Date and time to be determined.
- The briefing will introduce the B2B matchmaking program, the business culture of the European and Polish markets, information on the companies that have registered for the meetings, answer questions about the companies that will be met and provide advice on the type of information that may be requested by potential investors.

5.4 Planning of B2B Meetings [Deliverable 4]

- Organize a proactive email, direct message and phone campaign to recruit company participants; assess their investment plans, capacity, and location requirements; and schedule as many meetings as possible. Campaign should begin June 15, 2026.
- Secure and confirm qualified and targeted companies to participate in FDI meetings with Canadian EDO delegates.
- Coordinate and schedule a minimum of three (3) meetings for each of the Canadian cities/provinces in attendance, for an estimated fifteen (15) provinces/cities. The number of Canadian delegation members is to be confirmed. Each meeting will last 25 minutes. (Note: The previous experience of the Contractor in organizing and securing one-to-one meetings of this nature will be evaluated.)
- Provide a preliminary B2B meeting schedule to TGP and preliminary individual meeting packages to each Canadian EDO by August 25, 2026. Each package should include a preliminary B2B meeting schedule (with dates, times, and locations of each meeting) and confirmed company profiles (with information on the company, the nature/type of investment projects or opportunities being sought, as well as the name(s), email address(es) and mobile phone number(s) of the of company representative(s) attending each meeting).

    (Note: TGP can provide sample B2B schedules and company profiles to the Contractor, upon request.)
- Reconfirm all meetings with companies prior to the event, by August 28, 2026. If meetings are cancelled or postponed, the Contractor must make every effort to arrange alternative relevant meetings with local contacts that have been validated and ranked by the members of the Canadian EDO delegates.
- Provide regular progress updates to TGP on the status of recruitment efforts – highlighting meetings arranged and confirmations received – on a weekly basis starting in June 2026 until August 2026.
- As part of its outreach to arrange the B2B meetings, the Contractor will be asked to invite the list of targeted companies, through its network or targeted database, to networking events at MSPO identified by TGP. Dates and times of networking events are to be determined. Should the Contractor be asked to support recruitment for networking events, they will be expected to provide TGP the final list of confirmed companies and executives that accepted to participate. This list will include complete Title or honorific, first name, surname, job title, company name, company profile (no more than fifty words), mobile number and email. Reporting language shall be English.

5.5 Coordination of B2B Meetings [Deliverable 5]

- Provide TGP a final, printed schedule of B2B meetings by September 2, 2026, including the confirmed dates, times, and locations for each meeting. The schedule must be organized by each EDO.
- Provide final B2B meeting packages to each Canadian EDO by September 2, 2026. The package must include the meeting schedule (which itself must include the dates, times, locations of each meeting), company profiles, the nature/type of investment projects or opportunities being sought, as well as the name(s), email address(es) and mobile phone number(s) of the of

company representative(s) attending each meeting.

- Provide at least three (3) official staff members to attend MSPO in person from September 7-11, 2026, to assist with the on-site coordination of B2B meetings in accordance with the schedule. The Contractor will be required to name these staff members in their proposal and provide their curriculum vitae (CV). Staff member should have significant recent experience successfully executing similar projects. Any changes to the staff members appointed to attend in person must be approved by TGP.
- The location of the B2B meetings is to be confirmed. Meetings may either take place at the Canada Pavilion (if so, TGP is responsible for coordinating access to this space) or at the companies' booths. Alternatively, meeting may take place in a separate meeting room at Targi Kielce.
- The Contractor must make every effort to arrange alternate meetings in the event of cancellations or no-shows.

5.6 Post-Event Reporting [Deliverable 6]

- Provide TGP a comprehensive post-event report by October 9, 2026, that:
  - Evaluates B2B recruitment and matchmaking efforts (including metrics on meetings held, attendance, and an evaluation of outcomes)
  - Provides any feedback shared by company participants to assess satisfaction
  - Suggests potential follow up actions and recommendations for future matchmaking programs
  - Includes a list of companies that expressed interest in participating but were unable to do so. This list must include their full contact information: name, title, company profile, and email address.

6. PROJECT MANAGEMENT CONTROL PROCEDURES

- The individual identified in the proposal as the Project Manager shall maintain direct contact with the TGP to quickly follow up on activities outlined in the Work Schedule.
- The Project Manager shall be available at all times before and during the event.
- **<u>The Project Manager and two (2) additional representatives</u>** from the Contractor must be able to be physically present at Targi Kielce throughout MSPO, from September 7-11, 2026.

7. TGP'S OBLIGATIONS

- TGP will provide the Contractor with coordinates and value proposition details in English for each participating municipality/province and additional relevant information on EDO delegates, as received.
- TGP will provide feedback to the Contractor in a timely manner throughout the planning execution of all contract deliverables.

8. LOCATION OF WORK

- All staff assigned to a contract resulting from these specifications must be prepared to work in close collaboration and frequent contact with TGP. All pre-meeting work will be done at the Contractor's premises.

- During the dates of MSPO 2026, from September 7-11, 2026, the Contractor will need to be physically present at the Targi Kielce exhibition centre to provide on-site assistance.

9. LANGUAGE OF WORK

The primary language for regular interactions and business meetings will be **English**. Proficiency in French and Polish is considered an asset. The Canadian delegation is fluent in both English and French.

10. SECURITY REQUIREMENTS

Not applicable.

11. PERIOD OF WORK

From contract award date to October 9, 2026.

12. WORK SCHEDULE

The Contractor must comply with the below timelines and discuss with the Project Authority on any timing issues. **The below timeline is tentative and subject to change**.

Deliverables	Tasks	Completion Date
Deliverable 1	Project kick-off and briefing	June 1
	Provide TGP the booking calendar link for Canadian EDO delegates to schedule one-on-one calls	June 1
	Introductory one-on-one calls with participating Canadian delegation to discuss objectives, interests, and value propositions	From June 2-12
	Subsequent calls with participating Canadian delegation, as needed	Ongoing
Deliverable 2	Initial list of targeted companies delivered to TGP for review and & preference ranking	June 5
	Final list of companies to invite to B2B meetings completed. Contractor begins sending invitations and scheduling meetings	June 12
	Successive updates to the targeted list of companies as they become available	Ongoing
	Invitation follow-up and weekly status updates on recruitment efforts, meetings arranged and confirmations received	Starting June 15 and ongoing
Deliverable 3	Deliver virtual briefing on Europe defence & security market and meeting agenda details	Week of August 17
Deliverable 4	Provide preliminary B2B meeting schedule (master) to TGP and individual meeting packages to Canadian EDO delegates (incl. individual meeting schedules, company profiles, nature/type of projects or investment opportunities, name(s) of representative(s))	August 25

	Reconfirm and finalize EDO-investor meetings	August 28
Deliverable 5	Provide final B2B schedule (master) to TGP and individual meeting packages to Canadian EDO delegates (incl. individual meeting schedules, company profiles, nature/type of projects or investment opportunities, and name(s) of representative(s))	September 2
Deliverable 6	Provide TGP post-event comprehensive report with metrics on meetings, feedback, and recommendations	October 9

13. TRAVEL REQUIREMENTS

All travel requirements that the Bidder might deem adequate for the delivery of the Work defined in this Statement must be included in the fixed all-inclusive price that shall accompany the Bid. There shall be no reimbursement of any travel costs beyond the fixed all-inclusive price established at the time of contract award.

The Contractor shall be responsible for all accommodation and travel expenses incurred by its personnel traveling to and from Targi Kielce for attendance at MSPO 2026.

14. GOVERNMENT-FURNISHED EQUIPMENT / INFORMATION

No government-furnished equipment shall be provided.

15. TERMINOLOGY

Some terms of arts linked to Foreign Direct Investment are being used in this Statement of Work. All other words in this Statement of Work shall be read and understood in their entire context and in their ordinary sense.

Annex - Basis of Payment

Firm Price

In consideration of the Contractor satisfactorily completing all its obligations under the Contract, the Contractor will be paid a firm price of **EUR _______________** (*inserted at contract award*)**.** Applicable taxes are included.

In the instance that the Contractor is based outside of the Eurozone and is unable to accept payment in EUR, TGP will consider converting EUR to Polish Zlotys (PLN) or Canadian dollars (CAD) using the Bank of Canada's rate published at 10:00 EDT (Eastern Daylight Time, Ottawa, Ontario, Canada) on May 18, 2026. Were the currency of submission not included in that publication; TGP will use the Daily Mid Rate published by Oanda on May 18, 2026.

Schedule of Milestones

Payments will be made by wire transfer.

The schedule of milestones for which payments will be made in accordance with the Contract, as per section 5. Tasks and Deliverables of the Statement of Work, is as follows:

Payment No.	Deliverable No.	Deliverable/Description	Firm Amount (€) VAT-Included	Due Date/ Delivery Date
1	Del. 1	Conclusion of kick-off meeting and one-on-one calls with all Canadian delegation organizations to discuss interests, priorities, and value propositions.	30% of firm price	June 5, 2026
	Del. 2	Receipt and acceptance of initial and final lists of high-potential target companies and executives.		
2	Del. 3	Delivery, receipt, and acceptance of virtual market briefing presentation.	40% of firm price	September 2, 2026
	Del. 4	Receipt, and acceptance of initial meeting schedule and individual meeting packages for each Canadian delegate organization, including company profiles.		
	Del. 5	Receipt, and acceptance the final meeting schedule (master) and individual meeting packages for the Canadian delegation.		
3	Del. 6	On-site meeting coordination, including the organization of alternative meetings.	30% of firm price	October 9, 2026
		Post-event comprehensive report with metrics on meetings, feedback, and recommendations.		

All payments will be processed within 30 days upon receipt of the invoice.

Annex – Financial Offer Form

Name of Company:	
Address:	
Contact person:	
Phone number:	
E-mail:	

Firm Price

In consideration of the Contractor satisfactorily completing all its obligations under the Contract, the Contractor will be paid a firm price of **EUR _________________.** Applicable taxes are included.

In the instance that the Contractor is based outside of the Eurozone and is unable to accept payment in EUR, TGP will consider converting EUR to Polish Zlotys (PLN) or Canadian dollars (CAD) using the Bank of Canada's rate published at 10:00 EDT (Eastern Daylight Time, Ottawa, Ontario, Canada) on May 18, 2026. Were the currency of submission not included in that publication; TGP will use the Daily Mid Rate published by Oanda on May 18, 2026.

Important Notes:

- The Firm Price includes, but is not necessarily limited to, all costs resulting from the performance of the Work as described in the Statement of Work, all costs resulting from the performance of any additional Work described in the Bidder's Bid (unless clearly described as an option), all travel, living costs and all overhead costs including disbursements.
- Bidders must provide the breakdown of costs.

Annex - Technical Evaluation Criteria

Criterion	Title	Rating Scale
MANDATORY CRITERION		
M1. Company profile	The Bidders must provide: a) the merits and demonstrated value of their respective organization.	PASS or FAIL
M2. References	Bidders must provide at least **3 previous or current clients** as references for projects of **similar size and scope**. TGP may contact the references to confirm the information provided and quality of services. The information must include: name of individual, name of organization, email, and phone number.	PASS or FAIL
M3. Experience and Expertise of the Project Team	The Bidders must include the qualifications, expertise, and professional backgrounds of the team assigned to the project (The Project Manager and minimum two (2) additional representatives). For each Project Member, the Bidder must include: a) at least three (3) recent projects of similar size and/or scope or an equivalent combination of larger, smaller projects, including at least two (2) targeting the defence and security sector completed in the last five (5) years. Each project must include a brief description of the scope and results, as well as clients' names, project dates, and timeframes. b) the curriculum vitae (CV).	PASS or FAIL PASS or FAIL
POINT-RATED CRITERION		
PR 1. Experience in Business-to-Business Matchmaking Services	Bidders must demonstrate: - Knowledge and experience in foreign direct investment prospecting (i.e. providing investment leads), matchmaking services, and meeting scheduling, including a concise description of such experience in the last five (5) years. - Relevant experience in the defence and security sectors in Europe, including a robust network of senior business stakeholders in these sectors, is required. Experience in the defence and security sectors outside of Europe shall be considered an asset.	30 maximum points
PR 2. Understanding of the Methodology and Delivery Strategy	PR 2.1 Methodology for identifying companies and generating qualified investment leads for Canada.	25 maximum points
	PR 2.2 Overall coordination and delivery strategy of the B2B program.	25 maximum points
OPTIONAL POINT-RATED CRITERION		
PR 3. Value-added services	The Bidders may include additional value-added services that could benefit the mission in their proposals.	10 bonus points
TOTAL POINTS		**90**
MINIMUM POINTS REQUIRED		**48**

1.0 Mandatory Technical Criteria

The bid must meet the mandatory requirements as per the Statement of Work. The Bidder must provide the necessary documentation to demonstrate compliance with this requirement. Bids that do not meet the mandatory technical criteria will be considered non-responsive. Each mandatory technical criterion should be addressed separately.

M1. Company profile

In order to be considered responsive, the Bidders **must** provide:

a) the merits and demonstrated value of their respective organization.

M2. References

In order to be considered responsive, the Bidders must provide **at least 3 previous or current clients as references for projects of similar size and scope.** TGP may contact the references to confirm the information provided and quality of services.

The information must include: name of individual, name of organization, email, and phone number.

M3. Experience and Expertise of the Project Team

In order to be considered responsive, the Bidders must demonstrate that the staff that will be working on the project have the capacity, capabilities, expertise and network to provide all required services and deliverables listed in the Statement of Work.

Personnel who have direct experience in investment attraction and engagement with high-level business stakeholders are prioritized. Personnel with a strong network of business contacts in the defence and security sectors will also be prioritized, and an established network of global defence and security contacts shall be considered an asset.

The response **must** include the qualifications, expertise, and professional backgrounds of the team assigned to the project.

For each Project Member, the Bidders **must** provide:

a) at least three (3) recent projects of similar size and/or scope or an equivalent combination of larger, smaller projects, including at least two (2) targeting the defence and security sector completed in the last five (5) years. Each project must include a brief description of the scope and results, as well as clients' names, project dates, and timeframes;
b) the curriculum vitae (CV).

2.0 Point-Rated Technical Evaluation Criteria

Proposals that meet all of the mandatory technical criteria will be evaluated and point-rated against the criteria listed below, using the evaluation factors and weighting indicators indicated.

Bidders must obtain the required minimum of 48 points overall of the 90 points available in order to be evaluated on the basis of their financial proposal.

IMPORTANT: A Bidder must obtain a minimum of 48 points for the optional point-rated criterion be added to the score.

Any bid which fails to obtain the required minimum will be declared non-compliant.

PR 1. Experience in Business-to-Business Matchmaking Services (maximum 30 points)

Bidders are required to demonstrate knowledge and **experience in foreign direct investment prospecting** (i.e. providing investment leads) and matchmaking services along with meeting scheduling, providing a concise description of such experience in the last five (5) years.

Relevant experience in the defence and security sectors in Europe, including a robust network of senior business stakeholders in these sectors, is required. Experience in the defence and security sectors outside of Europe shall be considered an asset.

To do so, bidders must provide a concise description of their relevant experience through **three (3) strong examples** of projects completed within the **last five (5) years**. At least **two (2)** of these projects must have **targeted the defence and security sectors**. Each example should clearly outline the client's name, the project timeline (dates and duration), and a detailed description of the project's scope and results. Please note that the issuer may reach out to these references to inquire further about the bidder's performance and success in delivering the results described. These references can be the same as in section M2.

Rating Table for PR 1.

Rating	Description
Excellent 22-30 points	Demonstrate significant and exceptional details of experience leading to a complete and thorough understanding of the requirement.
Satisfactory 15-21 points	Demonstrate satisfactorily details of experience and contains several value-added elements.
Limited 8-14 points	The response includes limited and/or outdated details of experience.
Poor 0-7 point	The response includes insufficient and/or unrelated details of experience.

PR 2. Understanding of the Methodology and Delivery Strategy (maximum 50 points)

PR 2.1 Methodology for identifying local companies and generating qualified leads.

Bidders must clearly explain their approach for identifying local companies and recruiting qualified leads for the B2B meetings.

Bidders must include a clear description of the methods and sources utilized for gathering contact details. These sources may include personal networks, primary research, commercial databases (e.g., Dun & Bradstreet), or other verified and reliable platforms, ensuring a strong and credible foundation for outreach efforts.

Rating Table for PR 2.1

Rating	Description
Excellent 19-25 points	Exceptionally strategic, with a clear, logical process and well-defined steps.
Satisfactory 13-18 points	Generally clear and strategic, some steps may lack detail.

Limited 7-12 points	Shows some strategic thought but lack clarity in the process and steps.
Poor 0-6 point	Approach is unclear, lacks clarity and/or strategic direction.

PR 2.2 Overall coordination and delivery strategy of the B2B program

The Bidders must clearly explain the proposed strategy to deliver the required services and demonstrate their ability to meet deadlines listed in the Statement of Work.

To do so, Bidders must provide a detailed description of the process and steps that will be employed to achieve the project's objectives. The response should include the proposed team leader and team members to be assigned to each of the activities as outlined in the Statement of Work under "Tasks" and "Deliverables".

Rating Table for PR 2.2

Rating	Description
Excellent 19-25 points	Demonstrate significant and exceptional details, the process is well defined and comprehensive. The response exceeds the expectation.
Satisfactory 13-18 points	The response includes a substantive amount of the information required to be complete and contains several value-added elements.
Limited 7-12 points	The response includes some of the information required to be complete meeting the established minimum and contains no significant weaknesses.
Poor 0-6 point	The response includes very limited or no information.

PR 3. Value-added services (maximum 10 extra points)

The Bidders may include additional value-added services that could benefit the mission in their proposals.

Rating Table for PR 3.

Rating	Description
Excellent 8-10 points	The value-added services proposed exceeds the expectations and can definitely improve the B2B program.
Limited 4-7 points	The value-added services proposed meets the expectations and could potentially improve the B2B program.
Poor 0-3 point	The value-added services proposed do not meet the expectation and/or are not relevant to the B2B program.

Annex – Security Requirements Check List

Government of Canada Gouvernement du Canada

Contract Number / Numéro du contrat
Security Classification / Classification de sécurité

SECURITY REQUIREMENTS CHECK LIST (SRCL)
LISTE DE VÉRIFICATION DES EXIGENCES RELATIVES À LA SÉCURITÉ (LVERS)

PART A - CONTRACT INFORMATION / PARTIE A - INFORMATION CONTRACTUELLE

1. Originating Government Department or Organization / Ministère ou organisme gouvernemental d'origine: **Global Affairs Canada**	2. Branch or Directorate / Direction générale ou Direction: TGP
3. a) Subcontract Number / Numéro du contrat de sous-traitance	3. b) Name and Address of Subcontractor / Nom et adresse du sous-traitant

4. Brief Description of Work / Brève description du travail

FDI matchmaking between Canadian municipalities and provinces and potential European defence & security investors at MSPO 2026 in Kielce, Poland, September 7-11, 2026.

	No / Non	Yes / Oui
5. a) Will the supplier require access to Controlled Goods? Le fournisseur aura-t-il accès à des marchandises contrôlées?	✓	
5. b) Will the supplier require access to unclassified military technical data subject to the provisions of the Technical Data Control Regulations? Le fournisseur aura-t-il accès à des données techniques militaires non classifiées qui sont assujetties aux dispositions du Règlement sur le contrôle des données techniques?	✓	

6. Indicate the type of access required / Indiquer le type d'accès requis

	No / Non	Yes / Oui
6. a) Will the supplier and its employees require access to PROTECTED and/or CLASSIFIED information or assets? Le fournisseur ainsi que les employés auront-ils accès à des renseignements ou à des biens PROTÉGÉS et/ou CLASSIFIÉS? (Specify the level of access using the chart in Question 7. c) (Préciser le niveau d'accès en utilisant le tableau qui se trouve à la question 7. c)	✓	
6. b) Will the supplier and its employees (e.g. cleaners, maintenance personnel) require access to restricted access areas? No access to PROTECTED and/or CLASSIFIED information or assets is permitted. Le fournisseur et ses employés (p. ex. nettoyeurs, personnel d'entretien) auront-ils accès à des zones d'accès restreintes? L'accès à des renseignements ou à des biens PROTÉGÉS et/ou CLASSIFIÉS n'est pas autorisé.	✓	
6. c) Is this a commercial courier or delivery requirement with no overnight storage? S'agit-il d'un contrat de messagerie ou de livraison commerciale sans entreposage de nuit?	✓	

7. a) Indicate the type of information that the supplier will be required to access / Indiquer le type d'information auquel le fournisseur devra avoir accès

Canada	NATO / OTAN	Foreign / Étranger
✓	☐	☐

7. b) Release restrictions / Restrictions relatives à la diffusion

Canada	NATO / OTAN	Foreign / Étranger
No release restrictions / Aucune restriction relative à la diffusion ✓	All NATO countries / Tous les pays de l'OTAN ☐	No release restrictions / Aucune restriction relative à la diffusion ☐
Not releasable / À ne pas diffuser ☐		
Restricted to: / Limité à : ☐	Restricted to: / Limité à : ☐	Restricted to: / Limité à : ☐
Specify country(ies): / Préciser le(s) pays :	Specify country(ies): / Préciser le(s) pays :	Specify country(ies): / Préciser le(s) pays :

7. c) Level of information / Niveau d'information

Canada	NATO / OTAN	Foreign / Étranger
PROTECTED A / PROTÉGÉ A ☐	NATO UNCLASSIFIED / NATO NON CLASSIFIÉ ☐	PROTECTED A / PROTÉGÉ A ☐
PROTECTED B / PROTÉGÉ B ☐	NATO RESTRICTED / NATO DIFFUSION RESTREINTE ☐	PROTECTED B / PROTÉGÉ B ☐
PROTECTED C / PROTÉGÉ C ☐	NATO CONFIDENTIAL / NATO CONFIDENTIEL ☐	PROTECTED C / PROTÉGÉ C ☐
CONFIDENTIAL / CONFIDENTIEL ☐	NATO SECRET / NATO SECRET ☐	CONFIDENTIAL / CONFIDENTIEL ☐
SECRET / SECRET ☐	COSMIC TOP SECRET / COSMIC TRÈS SECRET ☐	SECRET / SECRET ☐
TOP SECRET / TRÈS SECRET ☐		TOP SECRET / TRÈS SECRET ☐
TOP SECRET (SIGINT) / TRÈS SECRET (SIGINT) ☐		TOP SECRET (SIGINT) / TRÈS SECRET (SIGINT) ☐

TBS/SCT 350-103(2004/12)

Security Classification / Classification de sécurité

Canada

Government of Canada | Gouvernement du Canada

Contract Number / Numéro du contrat

Security Classification / Classification de sécurité

PART A *(continued)* / PARTIE A *(suite)*

8. Will the supplier require access to PROTECTED and/or CLASSIFIED COMSEC information or assets?
Le fournisseur aura-t-il accès à des renseignements ou à des biens COMSEC désignés PROTÉGÉS et/ou CLASSIFIÉS?
If Yes, indicate the level of sensitivity:
Dans l'affirmative, indiquer le niveau de sensibilité :
✓ No / Non ☐ Yes / Oui

9. Will the supplier require access to extremely sensitive INFOSEC information or assets?
Le fournisseur aura-t-il accès à des renseignements ou à des biens INFOSEC de nature extrêmement délicate?
✓ No / Non ✓ Yes / Oui

Short Title(s) of material / Titre(s) abrégé(s) du matériel :
Document Number / Numéro du document :

PART B - PERSONNEL (SUPPLIER) / PARTIE B - PERSONNEL (FOURNISSEUR)

10. a) Personnel security screening level required / Niveau de contrôle de la sécurité du personnel requis

- ☐ RELIABILITY STATUS / COTE DE FIABILITÉ
- ☐ CONFIDENTIAL / CONFIDENTIEL
- ☐ SECRET / SECRET
- ☐ TOP SECRET / TRÈS SECRET
- ☐ TOP SECRET– SIGINT / TRÈS SECRET – SIGINT
- ☐ NATO CONFIDENTIAL / NATO CONFIDENTIEL
- ☐ NATO SECRET / NATO SECRET
- ☐ COSMIC TOP SECRET / COSMIC TRÈS SECRET
- ☐ SITE ACCESS / ACCÈS AUX EMPLACEMENTS

Special comments:
Commentaires spéciaux : ____________________

NOTE: If multiple levels of screening are identified, a Security Classification Guide must be provided.
REMARQUE : Si plusieurs niveaux de contrôle de sécurité sont requis, un guide de classification de la sécurité doit être fourni.

10. b) May unscreened personnel be used for portions of the work?
Du personnel sans autorisation sécuritaire peut-il se voir confier des parties du travail?
☐ No / Non ✓ Yes / Oui

If Yes, will unscreened personnel be escorted?
Dans l'affirmative, le personnel en question sera-t-il escorté?
☐ No / Non ✓ Yes / Oui

PART C - SAFEGUARDS (SUPPLIER) / PARTIE C - MESURES DE PROTECTION (FOURNISSEUR)

INFORMATION / ASSETS / RENSEIGNEMENTS / BIENS

11. a) Will the supplier be required to receive and store PROTECTED and/or CLASSIFIED information or assets on its site or premises?
Le fournisseur sera-t-il tenu de recevoir et d'entreposer sur place des renseignements ou des biens PROTÉGÉS et/ou CLASSIFIÉS?
✓ No / Non ☐ Yes / Oui

11. b) Will the supplier be required to safeguard COMSEC information or assets?
Le fournisseur sera-t-il tenu de protéger des renseignements ou des biens COMSEC?
✓ No / Non ☐ Yes / Oui

PRODUCTION

11. c) Will the production (manufacture, and/or repair and/or modification) of PROTECTED and/or CLASSIFIED material or equipment occur at the supplier's site or premises?
Les installations du fournisseur serviront-elles à la production (fabrication et/ou réparation et/ou modification) de matériel PROTÉGÉ et/ou CLASSIFIÉ?
✓ No / Non ☐ Yes / Oui

INFORMATION TECHNOLOGY (IT) MEDIA / SUPPORT RELATIF À LA TECHNOLOGIE DE L'INFORMATION (TI)

11. d) Will the supplier be required to use its IT systems to electronically process, produce or store PROTECTED and/or CLASSIFIED information or data?
Le fournisseur sera-t-il tenu d'utiliser ses propres systèmes informatiques pour traiter, produire ou stocker électroniquement des renseignements ou des données PROTÉGÉS et/ou CLASSIFIÉS?
✓ No / Non ☐ Yes / Oui

11. e) Will there be an electronic link between the supplier's IT systems and the government department or agency?
Disposera-t-on d'un lien électronique entre le système informatique du fournisseur et celui du ministère ou de l'agence gouvernementale?
✓ No / Non ☐ Yes / Oui

TBS/SCT 350-103(2004/12)

Security Classification / Classification de sécurité

Canada

Government of Canada | Gouvernement du Canada

Contract Number / Numéro du contrat
Security Classification / Classification de sécurité

PART C - *(continued)* / PARTIE C - *(suite)*

For users completing the form **manually** use the summary chart below to indicate the category(ies) and level(s) of safeguarding required at the supplier's site(s) or premises.
Les utilisateurs qui remplissent le formulaire **manuellement** doivent utiliser le tableau récapitulatif ci-dessous pour indiquer, pour chaque catégorie, les niveaux de sauvegarde requis aux installations du fournisseur.

For users completing the form **online** (via the Internet), the summary chart is automatically populated by your responses to previous questions.
Dans le cas des utilisateurs qui remplissent le formulaire **en ligne** (par Internet), les réponses aux questions précédentes sont automatiquement saisies dans le tableau récapitulatif.

SUMMARY CHART / TABLEAU RÉCAPITULATIF

Category Catégorie	PROTECTED PROTÉGÉ			CLASSIFIED CLASSIFIÉ			NATO				COMSEC					
	A	B	C	CONFIDENTIAL CONFIDENTIEL	SECRET	TOP SECRET TRÈS SECRET	NATO RESTRICTED NATO DIFFUSION RESTREINTE	NATO CONFIDENTIAL NATO CONFIDENTIEL	NATO SECRET	COSMIC TOP SECRET COSMIC TRÈS SECRET	PROTECTED / PROTÉGÉ A	B	C	CONFIDENTIAL CONFIDENTIEL	SECRET	TOP SECRET TRÈS SECRET
Information / Assets Renseignements / Biens																
Production																
IT Media / Support TI																
IT Link / Lien électronique																

12. a) Is the description of the work contained within this SRCL PROTECTED and/or CLASSIFIED?
La description du travail visé par la présente LVERS est-elle de nature PROTÉGÉE et/ou CLASSIFIÉE?

☑ No / Non ☐ Yes / Oui

If Yes, classify this form by annotating the top and bottom in the area entitled "Security Classification".
Dans l'affirmative, classifier le présent formulaire en indiquant le niveau de sécurité dans la case intitulée « Classification de sécurité » au haut et au bas du formulaire.

12. b) Will the documentation attached to this SRCL be PROTECTED and/or CLASSIFIED?
La documentation associée à la présente LVERS sera-t-elle PROTÉGÉE et/ou CLASSIFIÉE?

☑ No / Non ☐ Yes / Oui

If Yes, classify this form by annotating the top and bottom in the area entitled "Security Classification" and indicate with attachments (e.g. SECRET with Attachments).
Dans l'affirmative, classifier le présent formulaire en indiquant le niveau de sécurité dans la case intitulée « Classification de sécurité » au haut et au bas du formulaire et indiquer qu'il y a des pièces jointes (p. ex. SECRET avec des pièces jointes).